This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

CITY OF BERKELEY

CITY COUNCIL REGULAR MEETING

FEBRUARY 25, 2025

>> MAYOR ISHII: OKAY. HELLO.

>> RECORDING IN PROGRESS.

>> MAYOR ISHII: HELLO, EVERYONE. GOOD EVENING. HI. THANK YOU SO MUCH. OKAY. SO I WOULD LIKE TO CALL TO ORDER -- WHERE IS MY NOTES? THANK YOU. I WOULD LIKE TO CALL TO ORDER THE REGULAR MEETING OF THE BERKELEY. TODAY IS FEBRUARY 25TH, 2025 AND I WOULD LIKE TO START WITH A ROLL, PLEASE.

>> LUNAPARRA.

>> HERE. HERE. MAYOR ISHII.

>> MAYOR ISHII: HERE. YES, SO I JUST REALIZED WE HAVE JUST MAKE FOLKS AWARE WE HAVE AN ADJOURNMENT IN MEMORY. I BELIEVE WE JUST HAVE ONE. AND I THINK WE WILL HAVE COUNCILMEMBER TREGUB SPEAK TO THAT AT THE END IF THAT'S OKAY? I WOULD LIKE TO SUBMIT AN EMERGENCY ITEM FOR COUNCIL TO CONSIDER ADDING TO THE CONSENT CALENDAR. THE BUD FOUND A CONFLICT OF INTEREST AND WE NEED TO MAKE A CHANGE OF OUR APPOINTMENT FOR THE 2 BY 2 COMMITTEE. WE ARE TAKING THIS URGENT ACTION TO ENSURE THAT COUNCILMEMBER TREGUB IS AVAILABLE TO ATTEND THE NEXT MEETING FOR THIS BODY ON

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

THURSDAY, 2-27, TWO DAYS FROM NOW. THEREFORE, THIS APPOINTMENT CAN'T WAIT UNTIL THE NEXT COUNCIL MEETING. IT WAS BROUGHT TO OUR ATTENTION THAT WE NEED TO REAPPOINT COUNCILMEMBER TAPLIN. HE WAS A PREEXISTING POINTY AND HE WOULD LIKE TO CONTINUE IN THIS POSITION. I WOULD LIKE TO ADD FOR UNANIMOUS TO BE MARKED TO THE CONSENT CALENDAR. CAN WE MARK IT AS UNANIMOUS?

>> STAFF: MOTION AND SECOND.

>> SO MOVED.

>> SECOND.

>> MAYOR ISHII: I THINK IT PASSES UNANIMOUSLY, THEN. EVERYONE THEN WILL BE RECORDED AS AYE AND THIS WILL BE ADDED TO THE COUNCIL'S CONSENT CALENDAR FOR CONSIDERATION. I AM SORRY FOLKS, CAN WE HAVE QUIET, PLEASE? THANK YOU. MOVING ON NOW TO CITY MANAGER COMMENTS.

>> NO COMMENTS TONIGHT, MADAM MAYOR.

>> YEAH, I SIMPLY WANTED TO MENTION THAT ONE OF MY PREDECESSORS POLLY ARMSTRONG HAS PASSED.

>> MAYOR ISHII: THANK YOU.

>> AND I PLAN TO DO SOMETHING AT OUR NEXT COUNCIL MEETING AND ADJOURN IN HER MEETING, BUT I WANTED TO MARK HER PASSING AT THIS MEETING, SO THANK YOU.

>> MAYOR ISHII: YES, THANK YOU FOR THE REMINDER. SO PAULY ARMSTRONG AND MARTY SCHIFFENBAUER ARE TWO.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> TONIGHT?

>> MAYOR ISHII: THANK YOU, SORRY. PAULI FOR NEXT TIME, BUT MARTY FOR THIS EVENING, YES. THANK YOU SO MUCH. SO NO COMMENTS FROM THE CITY MANAGER, SO WE WILL NOW TAKE PUBLIC COMMENT ON NON-AGENDA MATTERS.

>> STAFF: THERE HAS BEEN A CALL FOR PUBLIC COMMENT ON NON-AGENDA MATTERS, SO WE ARE GOING TO GRAB THE DRUM AND SELECT UP TO FIVE CARDS. FIVE SPEAKERS HAVE BEEN SELECTED FROM IN THE ROOM AND IN NO PARTICULAR ORDER, THE SPEAKERS ARE STEVE TRACY, N SHAWM, MARK MCDONALDS, RUSSELL BATES, AND ANDREA PRITCHETT.

>> MAYOR ISHII: IF THOSE FOLKS CAN COME UP TO SPEAK, PLEASE? DEPUTY CLERK, WOULD YOU PLEASE TELL ME HOW MUCH TIME THEY WILL HAVE, PLEASE?

>> STAFF: YES, EACH SPEAKER WILL HAVE ONE MINUTE TO COMMENT.

>> HELLO, EVERYBODY. GOOD EVENING TO YOU. I WOULD LIKE TO ADJOURN THE MEETING FOR THE THREE INFANTS WHO DIED OF HYPOTHERMIA IN GAZA LAST NIGHT BECAUSE THEY WEREN'T PROVIDED SHELTER. AND WHILE GENOCIDE TERRY AND THE REST OF YOU WHO ARE AGAINST THE CEASEFIRE IN BERKELEY.

>> MAYOR ISHII: PLEASE REFRAIN FROM CALLING PEOPLE NAMES.

>> THE FOLKS WHO VOTED AGAINST THE CEASEFIRE BRINGING UP THE PEOPLE TO DISCUSS OPENLY SO WE CAN FIND OUT WHO THE COWARDS ARE AND WHO THE BRAVE PEOPLE ARE IN THE BERKELEY COUNCIL. YOU NEED

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

TO DO THAT. IT'S A LONG TIME COMING TO THE PEACE AND JUSTICE COMMISSION AND YOUR OBFUSCATION OF IT AND PUTTING IT ASIDE SAYS TO ME THAT YOU PEOPLE ARE FULL OF SHIT. I DON'T LIKE TO CURSE TO THE COUNCIL. IT DOESN'T DO ANY GOOD, BUT IF YOU DON'T BRING IT UP, I STILL BELIEVE THAT. THANK YOU VERY MUCH.

>> MAYOR ISHII: WHO IS OUR NEXT COMMENTATOR? -- IS OUR NEXT COMMENTATOR AVAILABLE? [INAUDIBLE]

>> YES.

>> GOOD EVENING, LADIES AND GENTLEMEN.

>> MAYOR ISHII: SORRY, COULD YOU SPEAK TO THE MIC OVER HERE?

>> OKAY. IS THAT ALRIGHT?

>> MAYOR ISHII: YES, SO PEOPLE CAN HEAR YOU ONLINE. THANK YOU.

>> THIS IS A PICTURE, A BLOCK BEFORE THE ROSE GARDEN AS YOU WALK UP FROM UC, SUPER BUSY SIDEWALK. TAKEN FROM MY DRIVEWAY, BEAUTIFUL WOOD. WHAT ARE THOSE THINGS OUT IN THE MIDDLE OF THE SIDEWALK? I AM ASHAMED TO SAY THEY ARE MY NEIGHBOR'S GARAGE DOORS. THEY ARE A COUPLE YEARS OLD. I LIKED THE OTHER NEIGHBORS, WE TRY TO GET ALONG. I JUST LOOK THE OTHER WAY. IT SEEMED WRONG UNTIL I SAW A LITTLE KID JACK THE HANDLEBARS AND ALMOST FALL DOWN. HE HAD TO GET OFF HIS BIKE. THERE IS NO PERMIT. THEY ARE AGAINST CODE. I THOUGHT I WOULD DO THE RIGHT THING. I FILLED OUT THE 116 FORM WITH BUILDING AND SAFETY. I SENT EMAILS. THREE WEEKS DOWN THE ROAD DARYL CHAPEL REPLIED, HE'S NOTIFIED PUBLIC

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

WORKS AND HE WILL LEAVE IT TO THEIR DISCRETION. PLEASE HELP ME URGE THEM TO TAKE SOME ACTION. IT'S AGAINST CODE AND IT'S UNPERMITTED.

>> MAYOR ISHII: THANK YOU.

>> IT SHOULD BE LOW HANGING FRUIT TO FIX THIS FOR PUBLIC SAFETY.

>> MAYOR ISHII: THANK YOU. I APPRECIATE YOUR COMMENT. OKAY. SORRY, FOLKS, YOU KNOW I AM A STICKLER FOR TIMING. SO YOU HAVE A MINUTE JUST SO YOU KNOW.

>> GOOD EVENING, MAYOR, COUNCILOR. MY NAME IS MARK MCDONALDS. I SERVED EIGHT YEARS ON THE PEACE AND JUSTICE COMMISSION. I AM JUST A LONGTIME ANTI-WAR BERKELEY CITIZEN AND I AM BACK TO PAINTING SIGNS AGAIN. YEAH, WE GOT A CEASEFIRE RESOLUTION THROUGH THE PEACE AND JUSTICE COMMISSION. IT WAS A LONG DRAMATIC NIGHT. WE FEEL LIKE WE REPRESENT THE MAJORITY OF THE CITY. THAT'S WHERE THE CONSCIENCE OF THE BERKELEY CITIZENS LIE. WE ARE THE ONLY CITY AROUND HERE WHO HASN'T PASSED A CEASEFIRE RESOLUTION AND WE REALLY ARE EMBARRASSED BY THAT. SO WE ARE HOPING YOU FOLKS WILL PUT THE RESOLUTION ON THE AGENDA AND AT LEAST VOTE IT SO WE KNOW WHERE WE STAND. THAT'S ALL WE ARE ASKING. TAKE A LOOK AT IT, IT'S A TRAGEDY THAT BREAKS MY HEART EVERY DAY. I AM JUST AGAINST BOMBS DROPPED ON BABIES. IT'S A PERSONAL THING. OKAY. THANK YOU VERY MUCH FOR YOUR CONCERN.

>> MAYOR ISHII: THANK YOU.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> GOOD EVENING, COUNCILMEMBERS. MY NAME IS ANDREA PRITCHETT AND WITH THE BERKELEY COB WATCH AMONGST OTHER THINGS. IT SEEMS LIKE PUBLIC COMMENT HAS BEEN WHITTLED DOWN TO FIVE MINUTES, FIVE SPEAKERS ONE MINUTE EACH. I WAS OLD ENOUGH 30 MINUTES WAS JUST ASSUMED AND PEOPLE GOT THREE MINUTES EACH. I WOULD LIKE TO SEE US MOVE IN A DIFFERENT DIRECTION. MAYOR, I SENT AN EMAIL TO YOU ABOUT THE SEU AND MY DESIRE TO MEET WITH YOU ABOUT THE COMPLICATIONS WITH THAT. WE HAVE A POLICE DEPARTMENT THAT IS NOT COMPLICATING WITH THE SPIRIT OF THE RESOLUTION THAT WAS PASSED AND THE CREATION OF THE SEU. WE NEED YOUR HELP. WE HAVEN'T BEEN ABLE TO GET HELP FROM ANYBODY ELSE IN THE CITY. I WANT TO EXPRESS MY DEEP CONCERN THE RECOMMENDATIONS FROM THE POLICE ACCOUNTABILITY BOARD THIS MORNING REGARDING THE TEXT GATE AND THE FACT THAT WE KNOW WE HAVE OFFICERS THAT SHARED RACIST TEXTS AMONGST THEMSELVES AND ENGAGE IN A QUOTA SYSTEM WILL HAVE NO CONSEQUENCE AND THEIR REPORT RECOMMENDATIONS WILL BE IGNORED.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENT.

>> THANK YOU.

>> STAFF: THE LAST CARD THAT WAS DRAWN IS N. SHAM.

>> HELLO, EVERYBODY. I AM HERE TO ONLY REMIND EVERYBODY HERE OF THE RULES AND PROCEDURES THAT GOVERN RESOLUTIONS THAT ARE PASSED BY VARIOUS COMMISSIONS IN THE CITY OF BERKELEY. A RESOLUTION THAT IS PASSED AT A MEETING OF THE COMMISSION CAN BE CHANGED,

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

RESCINDED ONLY BEFORE THAT MEETING IS ADJOURNED, NOT ANY TIME AFTER. AND THERE IS A PROCEDURE FOR THAT, WHICH IS SOMEONE FROM THE PREVAILING GROUP WOULD MAKE A MOTION AND THEN ANOTHER ONE JUST SECOND THEM, AND THEN AFTER ADJOURNMENT, THEY WORK OUT THE DETAILS OF WHEN THEY WANT TO DO THAT. SO, YOU KNOW, THESE RESOLUTION THAT HAS BEEN PASSED EVERYONE SAID OH, MY GOSH, YOU KNOW YOU BETTER JUST NOT ALLOW PUBLIC COMMENTS. THAT'S WHAT I AM SUGGESTING TO YOU BECAUSE IT GOES AWAY. IT GOES WELL WITH THE TREND THAT OUR COUNTRY IS GOING TO --

>> MAYOR ISHII: I APPRECIATE YOUR COMMENT, BUT I AM REALLY SORRY I AM OUT OF TIME FOR YOUR COMMENTS.

>> I UNDERSTAND. VERY WELL.

>> MAYOR ISHII: YEAH. DO WE HAVE COMMENTS ONLINE?

>> STAFF: YES, WE WILL GO TO THE FIRST FIVE HANDS RAISED IN ZOOM. AND THE FIRST SPEAKER IS MADELEINE'S IPHONE.

>> HI, EVERYONE. CAN EVERYONE HEAR ME?

>> MAYOR ISHII: YES.

>> OKAY. GREAT. MY NAME IS MADELEINE ROBERTS RICH. I AM A BERKELEY HIGH ALUM OF 2012 AND GENERALLY A VERY STAUNCH YIMBY FOR HOUSING. IN APRIL YOU WILL BE HEARING AN APPEAL FOR THE UNITED ARTIST CINEMA ON SHATTUCK AVENUE AND I WANTED TO GET IN TOUCH WITH YOU MONTHS BEFORE BECAUSE I JUST WANT YOU TO THINK ABOUT HOW THE PUBLIC DESIRE TO PRESERVE CINEMATIC INFRASTRUCTURE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

ON SHATTUCK AVENUE, WHICH HAS BEEN DESIGNED AS A MIXED USE ENTERTAINMENT DISTRICT AND HAS MANY VERY DELICATELY INTERTWINED USES OF THEATER, RESTAURANTS, BARS, BOOKSTORES UNTIL RECENTLY OPERATING CINEMA, HOW THAT WAS ALL PLANNED AND BY ALLOWING FOR WHAT I THINK IS THAT UNLAWFUL JUST BY VIRTUE OF CEQA AND THE PUBLIC PROCESS OF THE DEMOLITION OF THIS THEATER FOR APARTMENTS IS AGAINST THE WILL OF THE PEOPLE AND LOSING THE LAST CINEMA WHICH IS PURPOSE BUILT INFRASTRUCTURE, WE WILL NEVER GET A CINEMA BACK THERE. THANK YOU VERY MUCH.

>> MAYOR ISHII: THANK YOU. I KNOW SOMETIMES IT CAN BE HARD TO SEE FROM ONLINE, BUT HOPEFULLY, I CAN ASK OUR CLERK TO HELP ME. THANK YOU.

>> STAFF: OUR NEXT SPEAKER IS KAREN H. KAREN H., YOU SHOULD BE ABLE TO SPEAK.

>> RECORDING STOPPED.

>> HI, I AM HOPING YOU CAN HEAR ME.

>> RECORDING IN PROGRESS.

>> STAFF: YES, WE CAN HEAR YOU.

>> THANK YOU. MY NAME IS KAREN AND I AM HERE THIS EVENING, GREETINGS MADAM MAYOR AND COUNCILMEMBER KESARWANI. THANK YOU FOR LISTENING TO US TONIGHT. I AM HERE TO SPEAK TONIGHT ON BEHALF OF THE INCREDIBLE CESAR CHAVEZ PARK. I AM A RESIDENT OF DISTRICT 1 AND AN AVID DOG OWNER AND IT HAS COME TO MY ATTENTION THERE IS

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

AN EFFORT AFOOT TO EXCLUDE DOGS FROM CESAR CHAVEZ PARK. I WANTED TO ASK YOU QUICKLY YOU KEEP CESAR CHAVEZ PARK AS A PARK FOR ALL. AS A BERKELEY RESIDENTS I AM PROUD OF THE COMMUNITY AT CESAR CHAVEZ PARK AND THE WORK OF THE DOG OWNERS TO KEEP THE DOG PARK USEFUL AND A PARK FOR EVERYONE. SO THIS MOVE TO BE EXCLUSIVE SEEMS VERY MUCH IN LINE WITH WHAT'S GOING ON IN OUR COUNTRY AND I WANT IT TO STAY OUT OF NATURE AND REALLY KEEP CESAR CHAVEZ PARK INCLUSIVE FOR ALL OF US. THANK YOU FOR YOUR SERVICE, EVERYONE.

>> STAFF: OUR NEXT SPEAKER IS SHAINA RUSH.

>> SORRY, THIS ISN'T SHAINA. THIS IS HER CO-WORKER. I COULDN'T FIGURE OUT HOW TO CHANGE THE NAME ON HERE. BUT I WOULD URGE YOU TO AGENDIZE THE RESOLUTION, THAT THE PEACE AND JUSTICE COMMISSION PASSED FOR AN UP AND DOWN VOTE JUST SO WE CAN SEE WHERE EVERYONE STANDS ON IT. I THINK IT DESERVES THAT MUCH, YOU KNOW, GET OUR MONEY OUT OF BOMBS AND INTO THE PEOPLE, INTO THE THINGS THAT PEOPLE NEED HERE. ALSO, RELEASE THE TEXT GATE FILES. FREE PALACE.

>> STAFF: OUR NEXT SPEAKER IS ELANA AUERBACH.

>> HI, GOOD EVENING, EVERYONE. I WANT TO ECHO THAT THE PJC ARMS EMBARGO AND CEASEFIRE RESOLUTION ARMS EMBARGO AGAINST ZEAL, PLEASE. ZEAL IS EXPANDING AND THEY ARE BOMBING SYRIA NOW. 40,000 PEOPLE, I THINK THAT'S THE NUMBER OF STUDENTS AT CAL OR

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

UNDERGRADS AT CAL, I AM NOT REALLY SURE, THE PAST MONTH HAVE BEEN PUSHED OUT OF THE WEST BANK AND GNAT DOESN'T MENTION THE PEOPLE AND CHILDREN WHO ARE KILLED EVERY DAY IN GAZA. BERKELEY MUST BE ON THE RIGHT SIDE OF HISTORY WITH THIS. I WANT TO JUST POINT OUT, IT WAS ALREADY MENTIONED I WAS STUNNED THAT THIS MORNING AT THE PUBLIC SAFETY COMMITTEE, THEY BASICALLY, THREW AWAY THE PAB, WORKED FOR MONTHS AND MONTHS INNUMERABLE HOURS ON A REPORT. I WONDER IF THOSE COUNCILMEMBERS EVEN READ THAT REPORT WITH FOUR VERY SIMPLE RECOMMENDATIONS FOR POLICE OVERSIGHT IN OUR CITY. 85% OF US VOTED THAT WE WANT MORE POLICE OVERSIGHT, SO PLEASE, WE MUST IMPLEMENT THAT.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENT. YOUR TIME IS UP.

>> STAFF: OUR NEXT SPEAKER IS JANINE COHEN. THIS IS OUR FINAL SPEAKER.

>> THANK YOU. I AM ALSO CALLING IN TO URGE YOU TO TAKE UP THE PEACE AND JUSTICE RESOLUTION. I CANNOT STRESS ENOUGH THE SENTIMENTS OF THE FOLKS THAT HAVE BROUGHT THIS TO YOUR ATTENTION JUST TONIGHT. THE AMOUNT OF SUFFERING OF WATCHING FOR OVER A YEAR AND A HALF THE GENOCIDE OF THE PALESTINIAN PEOPLE, IT'S SPREADING FROM GAZA, THE BOMBS IN GAZA MAY HAVE STOPPED DROPPING, BUT THERE ARE NOW TANKS IN THE WEST BANK. THE CITY OF BERKELEY HAS BEEN THE ONLY EAST BAY CITY WHO HASN'T MADE -- BROUGHT THIS TO THE ATTENTION OR MADE A VOTE OR

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

ANYTHING. AND THE PEOPLE HAVE SPOKEN. WE HAVE BEEN CALLING ON YOU FOR MORE THAN A YEAR TO DO SOMETHING ABOUT THIS AND THE PEACE AND JUSTICE PUT FORTH A VALUABLE RESOLUTION. TAKE IT UP.

>> STAFF: THANK YOU.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENTS. WE ARE NOW MOVING ON TO THE CONSENT CALENDAR. COUNCIL COMMENTS? COMMENTS?

>> CONSENT CALENDAR.

>> MAYOR ISHII: YEAH,.

>> YEAH, I DO.

>> MAYOR ISHII: YES, COUNCILMEMBER HUMBERT.

>> M. HUMBERT: THANK YOU, MADAM MAYOR. I WANT TO BRING ATTENTION TO ITEM NUMBER 11, WHICH IS A CONTRACT TO, FOR JANITORIAL MAINTENANCE SERVICES AT THE SOON TO BE NEW PUBLIC RESTROOM ON TELEGRAPH AVENUE. I AM REALLY EXCITED ABOUT THIS. IT SUCH A CRITICAL AMENITY AND IT WILL MAKE LIFE BETTER FOR EVERYBODY WHO IS WALKING THE STREETS OF THE TELEGRAPH DISTRICT. ITEM 11 WILL HELP KEEP THAT NEW RESTROOM USABLE AND SANITARY. AND I ALSO WANT TO THANK FORMER COUNCILMEMBER ROBINSON FOR SPEARHEADING THIS NEW PUBLIC AMENITY. I ALSO WANT TO THANK COUNCILMEMBERS LUNAPARRA AND O'KEEFE FOR CONSENT ITEM 13. THIS BRINGS ATTENTION FOR THE NEED FOR WE HUMANS TO ALSO CARE FOR OTHER SENTIENT BEINGS THAT SHARE OUR WORLD. THANK YOU VERY MUCH. THAT'S ALL I HAVE.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER LUNAPARRA.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> C. LUNAPARRA: THANK YOU. FIRST, I WANT TO SEND MY STRONG SUPPORT TO UC WORKERS THAT ARE STRIKING TOMORROW AND THURSDAY. SEVERAL OF MY COLLEAGUES AND I WILL BE ON THE JOINT PICKET LINE ON BANCROFT AND TELEGRAPH THIS WEEK AND I HOPE THAT OTHERS WILL JOIN US. ON ITEM 11 I WAS SO EXCITED TO BE PRESENT AT THE OPENING OF THE PUBLIC RESTROOM ON TELEGRAPH. I WANT TO THANK STAFF FOR THE INCREDIBLE RIBBON CUTTING CEREMONY. THIS COULDN'T HAVE BEEN DONE WITHOUT MY PREDECESSOR COUNCILMEMBER ROBINSON WHO ADVOCATED STRONGLY FOR IT'S THE PROJECT. THIS RESTROOM HAS GREATLY IMPROVED THE QUALITY OF LIFE FOR ALL OF US. I WANT TO THANK TBID FOR THIS EFFORT AND TAKING ON THE MAINTENANCE RESPONSIBILITY. ON ITEM 12 I WAS HONORED TO WORK RESOLUTION. THIS RESOLUTION EXPRESSES THE CITY OF BERKELEY SUPPORT FOR EFFORTS AT THE STATE AND NATIONAL LEVEL TO PROTECT WHALES AND TURTLES FROM FAST MOVING GEAR, BOATS, AND OTHER DANGERS. THANKS.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER TREGUB.

>> I. TREGUB: THANK YOU SO MUCH. I WANTED TO THANK PUBLIC WORK STAFF FOR MOVING FORWARD ON PHASE ONE OF A CONTRACT TO BARTLETT THE STRAWBERRY CREEK CULVERT MAINTENANCE PROJECT. WE ARE A CITY OF HISTORY AND SOME HISTORIC INFRASTRUCTURE, SOME OF WHICH IS NEAR OR TOWARDS THE END OR PAST THE END OF USEFUL LIFE AND NEEDS TO BE REHABILITATED. I WANTED TO JUST ACKNOWLEDGE THAT OUR OFFICE HAS HELD -- WE RECEIVED -- AFTER RECEIVING A NUMBER OF

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

EMAILS FROM DISTRICT 4 RESIDENTS WHOSE PROPERTIES ABUT THE CULVERT, WE HAVE BEEN WORKING WITH THEM AND PUBLIC WORKS STAFF TO HAVE A COMMUNITY MEETING EARLY IN THE NEW YEAR. I UNDERSTAND THAT THIS PARTICULAR CONTRACT, WHICH I DO SUPPORT, THAT THE DIRECTION AT THIS JUNCTURE DID NOT INCLUDE AN OPPORTUNITY FOR -- D4 RESIDENTS WHO EXPRESSED THAT DESIRE TO SHARE IN THE COSTS WITH THE CITY OF REHABILITATING PORTIONS OF THE CULVERT THAT MAY RUN UNDERNEATH THEIR PROPERTIES. MY OFFICE IS VERY COMMITTED TO CONTINUING TO WORK CLOSELY WITH OUR ADMINISTRATION TO ENSURE THAT ANY POSSIBILITIES OF THIS HAPPENING IN THE FUTURE CAN BE EXPLORED AND THAT INFORMATION AROUND SUCH OPPORTUNITIES IS TIMELY SHARED WITH MY CONSTITUENTS. I ALSO WANT TO THANK STAFF FOR ITEM -- SORRY -- THE TELEGRAPH BATHROOMS ITEM, YES, ITEM NUMBER 11. MY CHIEF OF STAFF WAS THERE AT THE RIBBON CUTTING AND I WANT TO THANK COUNCILMEMBER LUNAPARRA, HER PREDECESSOR COUNCILMEMBER ROBINSON AND STAFF AND TBID FOR THEIR LEADERSHIP. AND LASTLY I AM EXCITED TO SUPPORT ITEM 14, SUPPORTING THE FREE AND SAFE PASSAGE OF WHALES, SEA TURTLES AND OTHER MARINE ANIMALS IN THE SAN FRANCISCO BAY AND COASTAL WATERS. THAT WAS A WHALE OF A SENTENCE.

>> MAYOR ISHII: THANK YOU. CAN WE GO TO COUNCILMEMBER BLACKABY, PLEASE.

>> B. BLACKABY: YES. I WILL BE BRIEF. I WANT TO DRAW

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

ATTENTION -- I SUPPORT EVERY ITEM ON THE AGENDA, AND I WANT TO DRAW ATTENTION TO ITEM 4 ESPECIALLY AS WE WILL BE ASKING RESIDENTS IN THE COMING WEEKS TO DO HARDENING IN ZONE 0. THE LAST FEW MONTHS THIS HAS BEEN RUNNING YOU CAN SCHEDULE A PICK UP AT ANY POINT AND THEY WILL COME IN AND CHIP AND MOVE AWAY THE DEBRIS. THE PROGRAM IS OPEN FROM MID MARCH TO MID DECEMBER. IT'S BEEN A REALLY AMAZING PROGRAM AND SOMETHING LIKE FOLKS IN MANY OF OUR DISTRICTS WILL BE LEANING ON THE NEXT COUPLE OF MONTHS. SO AGAIN, I AM SO GLAD TO SEE THIS ITEM AS PART OF THE BROADER CONSENT CALENDAR AND THANKS TO THE FIRE DEPARTMENT FOR THIS CONTRACT.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER. COUNCILMEMBER O'KEEFE.

>> S. O'KEEFE: I WANT TO THANK COUNCILMEMBER LUNAPARRA FOR AUTHORING THE ITEM 13, THE FREE PASSAGE OF WHALES AND SEA TURTLES. THANK YOU FOR ALLOWING ME TO COSPONSOR IT. I JUST WANT TO JUST INTRODUCE EVERYONE TO TWO FRIENDS OF MINE. MY FAMILY LOVES WHALES AND MARINE MAMMALS AND ESPECIALLY MY KIDS, AND SO I BROUGHT TO HONOR THE WONDERFUL ITEM, I BROUGHT HUMPHREY AND WILLIAM. I WANT YOU TO KNOW MY KIDS ARE TEENAGERS NOW SO WHAT I AM DOING IS VERY CRINGE. I APPRECIATE THE CRINGENESS, BUT THEY WANTED TO SAY THANK YOU TO EVERYONE. HOPEFULLY, THIS WILL PASS TONIGHT IN A MINUTE.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER. ANY OTHER

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

COUNCILMEMBER COMMENTS? OKAY. I WILL OPEN IT UP TO PUBLIC COMMENTS ON CONSENT CALENDAR AND INFORMATION ITEMS ONLY, PLEASE.

>> GOOD EVENING, AGAIN, COUNCILMEMBERS. I WANTED TO SPEAK IN FAVOR OF CONSENT CALENDAR ITEM NUMBER 2, THE NATIONAL ENDOWMENT FOR THE ARTS GRANT. I THINK THAT'S A GREAT THING TO APPLY FOR A GRANT FOR. I HOPE SOME OF THE CONTENT OF WHATEVER ART IS DEVELOPED AS A RESULT OF THAT $150,000 REFLECTS OUR DESIRE FOR PEACE. OUR STANCE AS A CITY AGAINST GENOCIDE. THAT IT HIGHLIGHTS THAT WHILE WE CARE ABOUT MARINE LIFE, WHALES, SENTIENT BEINGS, THAT WE ARE WILLING TO STAND UP FOR HUMANITY AS WELL. THIS IS A MOMENT TO BE COUNTED, MY FRIENDS. THIS IS A MOMENT TO LET THIS GO WITHOUT COMMENT IS TO BETRAY THE TRUST THAT THE PEOPLE OF BERKELEY HAVE IN YOU AS BERKELEY REPRESENTATIVES. WE HAVE A HISTORY AND A LEGACY. WE STAND UP. WE STOOD UP TO THE HOUSE ON UN-AMERICAN ACTIVITIES. WE STOOD UP TO THE INJUSTICES OF THE VIETNAM WAR. I AM COUNTING ON YOU TO STAND UP.

>> MAYOR ISHII: THANK YOU. THANK YOU FOR YOUR COMMENTS.

>> ON ITEM 11, IT'S REALLY GOOD TO SEE ONE OF THESE RESTROOMS MOVE FORWARD. THE STATEMENTS THAT HAVE BEEN MADE FROM SOME MEMBERS OF THE PUBLIC ABOUT THE OTHER RESTROOMS HAVE REALLY GONE TO EXTREME HYPERBOLE AND THEY COME OUT OF STIGMA AND FEAR AND HOSTILITY TOWARDS THE HOMELESS. THESE RESTROOMS ARE FOR THE WHOLE COMMUNITY. I WAS A TRANSPORTATION AND INFRASTRUCTURE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

COMMISSION LAST WEEK WHERE THERE WAS A PRESENTATION ON THE RESTROOMS AND ONE POSSIBLE COMMENTATOR SOMEHOW ASSOCIATED THE $500,000 ROBBERY AT THE BOMBAY JEWELRY AS WHY THERE SHOULD NOT BE PUBLIC RESTROOMS THERE. AS WE KNOW A $500,000 LOSS ROBBERY OBVIOUSLY, SHOULD HAVE SOMETHING TO DO WITH HOMELESS PEOPLE WHO MUST HAVE STOLEN AND PUT PLACED IN THEIR BACKPACKS OR SHOPPING CARTS, RIGHT?

>> MAYOR ISHII: THANK YOU. THANK YOU FOR YOUR COMMENT. NEXT COMMENT.

>> THANK YOU. CONSENT CALENDAR ITEM 2, I WOULD LIKE TO SUPPORT THAT. I WOULD LIKE TO SUPPORT THAT AS AN ARTIST AND AN ILLUSTRATOR. I WORKED FREELANCE IN NEW YORK. I WORKED FOR FRANCOIS MARIE AT THE NEW YORKER MAGAZINE. HER HUSBAND WROTE THE GRAPHIC NOVEL MOUSE, WHICH YOU MAY BE FAMILIAR WITH. I WANT YOU TO THINK MORE BROADLY ABOUT WHAT THE ARTS ARE ABOUT. THEY ARE ABOUT EXPRESSION. THEY ARE ABOUT PARTICIPATION IN THE LARGER WORLD. WHEN YOU LIMIT FREE SPEECH THAT YOUR CITY COUNCIL MEETINGS, THAT'S VERY SERIOUS. I SAW SOMETHING ELSE THAT'S VERY SERIOUS AND I WILL BE POSTING A VIDEO TOMORROW MARIN COUNTY CONFIDENTIAL STUB STACK.COM, IT WAS THE IDEM-- THE DELEGATE VOTING, SEVERE IRREGULARITIES. VERY DISTURBING. YOU COULDN'T WANT TO LET PEOPLE KNOW THAT WILL BE AT MARIN COUNTY CONFIDENTIAL SUBSTACK.COM. THANK YOU.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> MAYOR ISHII: THANK YOU.

>> ZIONISM IS A MENTALLY TRANSMITTED DISEASE. ON ARTICLE ITEM NUMBER 13 HERE, OF COURSE, COUNCILMEMBER LUNAPARRA NEVER CEASES TO AMAZE ME. CONSTANTLY I JUST WANT TO GIVE YOU A VIRTUAL HUG. SUCH AN IMPORTANT THING, BUT AS LONG AS WE ARE TALKING ABOUT THE SAFE HAZARD OF WHALES, SEA TURTLES, HOW ABOUT SINCE I AM A MEMBER OF THE BERKELEY HOMELESS UNION A LOT OF, HOW ABOUT FOR UNHOUSED PEOPLE AND PEOPLE IN VEHICLES. LET'S MAKE A SAFE PASSAGE FOR THEM AS WELL. IT'S ONLY FAIR. THANK YOU.

>> MAYOR ISHII: THANK YOU. THANK YOU FOR YOUR COMMENT.

>> GOOD EVENING, MAYOR, COUNCILMEMBERS AND STAFF. MY NAME IS BEN. I AM THE OCEANS CAMPAIGNER WITH THE CENTER FOR BIOLOGICAL DIVERSITY, THANK YOU. I WANT TO THANK THE COUNCIL FOR THE OPPORTUNITY TO PROVIDE COMMENT. I AM HERE REPRESENTING OUR MEMBERS IN THE CITY OF BERKELEY AND ALSO OUR MEMBERS ACROSS CALIFORNIA. I AM HERE IN JOINED BY SUPPORT UNIVERSITY OF BIODIVERSITY AND CLEAN AIR FOR KIDS AND NATIONAL -- EXPRESS ITS SUPPORT FOR PROTECTING, CALIFORNIA'S MARINE WILDLIFE. I WANT TO THAT YOU CAN COUNCILMEMBER LUNAPARRA AND COUNCILMEMBER O'KEEFE FOR THEIR LEADERSHIP ON THIS ISSUE. OUR STATE WATERS GET TO ENJOY AND EXPERIENCE. UNFORTUNATELY, EVERYDAY MARINE MAMMALS ARE FORCED TO NAVIGATE VARIOUS THREATS IN OUR STATE'S COASTAL WATERS. JUST THIS LAST SPRING IN ALAMEDA WE SAW A FEMALE GRAY

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

WHALE WASH UP DEAD AND SCIENTISTS BELIEVE IT WAS LIKELY DUE TO A VESSEL STRIKE. I LIKE TO THANK YOU FOR YOUR LEADERSHIP AND ENCOURAGE YOU TO PASS THE RESOLUTION. THANK YOU.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENT.

>> HELLO, COUNCILMEMBERS. MY NAME IS KARINA JAEGER. I AM A LONG TIME RESIDENT OF BERKELEY, CALIFORNIA. I AM ALSO A COLLEAGUE OF BEN'S SO I WILL PICK UP WHERE HE LEFT OFF. THANK YOU SO MUCH FOR YOUR SUPPORT OF CONSENT ITEM 13. THE ONLY THING I WILL SAY COUNCILMEMBER O'KEEFE, RATHER THAN CRINGE, I WOULD LIKE TO SUBMIT THEY ARE VERY CUTE. ALSO AS A PARENT OF TEENS, YOU KNOW, WE HAVE GONE WHALE WATCHING AND I KNOW ANYBODY WHO HAS HAD THE OPPORTUNITY TO SEE THESE MAJESTIC BEASTS KNOW THAT WE NEED TO DO WHAT WE CAN TO PROTECT THEM. APPRECIATE EVERYONE'S SUPPORT. THANK YOU SO MUCH.

>> MAYOR ISHII: THANK YOU.

>> HELLO. MY NAME IS BEATRICE. I AM A NEW RESIDENT TO THE EAST BAY AND I AM HERE TO THANK THE COUNCIL OF THEIR SUPPORT OF CONSENT ITEM NUMBER 13 AND APPRECIATE YOUR PROTECTION OF BIODIVERSITY AND MARINE MAMMALS AND HEALTHY FISHING COMMUNITIES AND URGE YOU TO CONTINUE THAT SPIRIT FOR ALL OF HUMANITY. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> GOOD EVENING, COUNCILMEMBERS AND STAFF. MY NAME IS NATALIE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

JOHNS. I AM A BERKELEY RESIDENT AND WORK AT THE CENTER FOR BIOLOGICAL DIVERSITY. I AM HERE IN SUPPORT OF RESOLUTION 13. THE CITY OF BERKELEY HAS A HISTORY OF ENVIRONMENTAL LEADERSHIP AND CONSERVATION ACTION THAT RESIDENTS LIKE MYSELF STRONGLY SUPPORT AND ADMIRE AND WE NEED YOU TO STEP UP AGAIN. WE NEED TO DO MORE TO ENSURE THAT CALIFORNIA MEETS ITS TARGET OF ZERO MORTALITY FOR WHALES AND SEA TURTLES. LIKE A BERKELEY RESIDENTS AND BAY AREA RESIDENTS, I CAN'T IMAGINE THIS PLACE WITHOUT THE WILDLIFE AND MARINE ENVIRONMENT THAT WE ARE SO LUCKY WE HAVE. WE NEED TO USE ALL THE TOOLS WE HAVE TO PROTECT THESE ANIMALS IN THEIR HOMES. THANK YOU.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENT.

>> I AM NOT JUST A HUMAN RIGHTS ACTIVIST, BUT AN ALLEN RIGHTS ACTIVIST. AND I APPRECIATE THIS WHATEVER IT IS, IT'S NUMBER 13, BUT I DO HOW YOU CALL IT, ITEM NUMBER 13. BUT AUSTRALIA I WANTED TO MAKE SURE THAT YOU UNDERSTAND THAT IN ADDITION TO ALL THE PEOPLE WHO HAVE BEEN KILLED AND MAIMED AND STARVED TO DEATH IN GAZA AND NOW IN THE WEST BANK IN SYRIA AS WELL, IN LEBANON, BY OUR HELP, BY THE UNITED STATES HELP THE ANIMALS HAVE SUFFERED TREMENDOUSLY IN GAZA. AND THE PICTURE, IF YOU HAVE SEEN THE PICTURE, YOU MAY NOT LIKE THE BROWNS AND THE BLACKS IN THE MIDDLE EAST, BUT THE ANIMALS LOOK ALL THE SAME.

>> MAYOR ISHII: THANK YOU. THANK YOU FOR YOUR COMMENT.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> HAVE PITY ON THE ANIMALS.

>> MAYOR ISHII: THANK YOU.

>> THEY ARE STILL SUFFERING.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENT.

>> HELLO THERE. MY NAME IS GLEN TURNER. AND MY GRANDPARENTS MET AT UC BERKELEY, MARRIED AND MY FATHER WAS BORN HERE. I MOVED HERE 40 YEARS AGO. MY DAUGHTER AND GRANDCHILD LIVE HERE IN BERKELEY NOW AND I AM HAPPY TO SEE THAT WE CARE ABOUT ANIMALS. NUMBER 13 IS WONDERFUL AND I AM REALLY PLEASED TO SEE WE HAVE GOT SOME CARING PEOPLE ON THE CITY COUNCIL. I WAS LOOKING AT THE SIGN THERE THAT SAYS BLACK LIVES MATTER, AND CERTAINLY THEY DO. I MEAN YOU SOMETIMES WONDER IF THEY EVER DID, BUT MAYBE THEY DO NOW MORE. BUT I AM ALSO THINKING THAT OTHER PEOPLE IN THIS WORLD MATTER, TOO LIKE THE PEOPLE IN GAZA WHO KEEP GOING BACK TO THE RUBBLE AND TRYING TO LIVE THERE. CHILDREN, FAMILIES. WE SHOULD BE PROUD OF BERKELEY. I USED TO BE PROUD OF BERKELEY AS A PROGRESSIVE, CARING CITY. I AM HOPING THAT YOU WILL RISE TO THE OCCASION TO CALL FOR A CEASEFIRE.

>> MAYOR ISHII: THANK YOU. THANK YOU FOR YOUR COMMENT. ARE THERE COMMENTS ONLINE? AND JUST A REMINDER FOR FOLKS ONLINE THAT THESE ARE COMMENTS ON COUNCIL CONSENT ITEMS OR INFORMATION ITEMS ONLY.

>> STAFF: OUR FIRST SPEAKER IS MARJORIE.

>> MAYOR ISHII: ROSE, IF YOU CAN HELP ME WITH THE TIMINGS OF

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

THESE ONES AS WELL.

>> STAFF: YES, ABSOLUTELY.

>> YES, I WANT TO THANK COUNCILMEMBERS LUNAPARRA AND O'KEEFE FOR THE RESOLUTION CONSENT ITEM 13 CALLING FOR ACTION TOWARD MITIGATING -- WELL, FOR PROTECTING MARINE ANIMALS AND THEREFORE MITIGATING THE BIODIVERSITY CRISIS. WE ALL NEED STRONGER LEADERSHIP IN HELPING US TO MITIGATE THE BIODIVERSITY CLIMATE AS WELL AS THE CLIMATE DIVERSITY WHICH CONTRIBUTES TO THE BIODIVERSITY CRISIS. IT TEAMS IN 2024 OUR AVERAGE GLOBAL TEMPERATURES AVERAGED 1.5 LEVELS INDUSTRIAL LEVELS WHICH IS SCARY FOR ALL HUMAN BEINGS ON EARTH. THANK YOU FOR YOUR LEADERSHIP AND TAKING STEPS TO HELP MITIGATE THE CRISES. THANK YOU.

>> STAFF: OUR NEXT SPEAKER IS NISHANGA.

>> HI, I AM DR. BLISS. GOOD EVENING, MAYOR, AND COUNCIL. I APPRECIATE YOUR WORK ON OUR BEHALF. I SEE HOW CHALLENGING THIS IS. I AM ALSO SPEAKING ON BEHALF OF ITEM 13. AND IT'S BEEN SHARED SO MANY BEAUTIFUL WAYS. I AM JUST GOING TO ADD THAT IT'S A PART OF MY JOY IN LIVING HERE IS WALKING THE SHORELINE AND SOMETIMES SEEING THE HEAD OF A SEAL OR SEA LION A BOBBING OUT THERE IN THE SURF. AND I JUST URGE YOU TO GO AHEAD AND TAKE THIS STEP FOR PROTECTION FOR MARINE CREATURES AND APPRECIATE YOUR WORK ON BEHALF OF ALL CREATURES OF THE EARTH. THANK YOU.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> STAFF: OUR NEXT SPEAKER IS MONI.

>> GOOD EVENING MAYOR AND COUNCIL, I AM MONI, RESIDENT OF BERKELEY AND ALUM OF UNIVERSITY OF BERKELEY. I WANT TO SPEAK IN FAVOR OF CONSENT ITEM NUMBER 2, THE ART AND CULTURE OF PEOPLE. NUMBER 5 FOR HEALTH SERVICES AS MARGINALIZED PERSONS IN THE CITY THAT ARE BEING COMPLETELY, UNFORTUNATELY DISPLACED. MANY OF OUR BLACK, BROWN, AND INDIGENOUS PEOPLE HAVE BEEN DISPLACED AND SUPPORT SERVICES ARE CRITICAL AS WELL AS NUMBER 13 AS I LOVE THE WATER, THE MARINA AND SAILING AND BEING NEAR WATER LIFE. WE NEED TO BE BETTER STEWARDS OF OUR EARTH AND WE ALSO NEED TO CARE FOR THE INTERNATIONAL PEACE AND JUSTICE THAT WAS SPOKEN TO EARLIER TO PRESENT THAT MESSAGE THAT BERKELEY IS KNOWN FOR WORLDWIDE FOR THE ANTI-APARTHEID MOVEMENT, PEACE MOVEMENT AND JUSTICE. LET'S MAKE GOOD TROUBLE AND LET'S MAKE A BEAUTIFUL COMMUNITY AS CITIZENS THAT CARE ABOUT EACH OTHER AS WELL AS ANIMALS OF THE EARTH AND A FAITH COMMUNITY. AMEN.

>> STAFF: OUR NEXT SPEAKER IS JANINE.

>> THANK YOU. I WOULD LIKE TO THANK YOU FOR PUTTING FORTH THESE EFFORTS TO BETTER OUR COMMUNITY. THE ARTS, THE WATERS, AND ALSO THE PUBLIC RESTROOMS IN SPACES WHERE THEY ARE IN GREAT NEED. BUT I MUST CONTINUE TO SPEAK ON BEHALF OF THE PALESTINIAN PEOPLE AND IT IS NO WONDER THAT THESE RESOLUTIONS WHILE MAKING OUR COMMUNITY SAFER, THEY ARE GREENWASHING. THESE ARE SOLUTIONS THAT

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

SHOULD BE AROUND THE WORLD AND HERE WE ARE TALKING ABOUT OUR ENVIRONMENT AND BETTERING OUR WATER SYSTEMS WHILE ALSO SUPPORTING THE BIGGEST ECOCIDE THAT OUR PLANET IS SEEING, WHICH IS THE MILITARY AND THE FIGHTING AND THE ERASURE OF INDIGENOUS PEOPLE ON ALL LANDS, SO LET'S KEEP OUR EYES ON NOT JUST MITIGATING THESE LITTLE, YOU KNOW, ONE-TIME SOLUTIONS, BUT LET'S LOOK AT THE BIG PICTURE AND LOOK AT THE THINGS THAT WE CAN DO HERE NOW BY MAKING RESOLUTIONS TO CALL OUT AND FIGHT AGAINST OPPRESSION EVERYWHERE.

>> STAFF: THANK YOU FOR YOUR COMMENTS. YOUR TIME IS UP. THAT'S OVER HOW MUCH TIME OVER. OUR NEXT SPEAKER IS AYANNA.

>> GOOD EVENING, COUNCIL. GOOD EVENING, COUNCIL. AND YOUR HONORABLE MAYOR. I DON'T THINK I HAD THE OPPORTUNITY TO BE IN FRONT OF THE COUNCIL FOR A WHILE. I WANT TO STAND IN SOLIDARITY WITH THE COMMUNITY FOR ITEMS 2 AND 13 AND SPEAK DIRECTLY TO ITEMS 5, WHICH IS I THINK GONE BEYOND THE COMMUNITY'S PURVIEW, THIS REPORT AND UNDERSTANDING THAT HOUSING IS ONE OF THE KEY SOCIAL DETERMINANTS OF HEALTH. WE MUST ALSO FOCUS ON MAKING SURE WE HAVE FULL FUNDING ON OUR COMMUNITY-BASED ORGANIZATIONS SO WE CAN DEAL WITH THE HEALTH DISPARITIES, HEALTH INEQUITIES AND FIGHT FOR OUR COMMUNITY BECAUSE WE KNOW THAT PREVENTIBLE DISEASES ARE THE MAIN KILLERS IN OUR COMMUNITY AND PREVENTIBLE CONDITIONS DRIVEN IN BERKELEY BY INSTITUTIONALIZED RACISM AND

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

SEGREGATION AND ECONOMIC DISPARITIES THAT HAPPEN IN OUR COMMUNITY.

>> STAFF: THANK YOU.

>> I HAVE BEEN WORKING AROUND THIS --

>> STAFF: YOU HAVE GONE OVER YOUR TIME.

>> MAYOR ISHII: THANK YOU SO MUCH FOR YOUR COMMENTS, THOUGH.

>> STAFF: OUR NEXT SPEAKER IS SHAINA.

>> YEAH, I STILL DON'T KNOW HOW TO CHANGE MY NAME ON THIS DAMN THING. I AM STILL NOT SHAINA. SO, BUT WE SHARE A WORK COMPUTER. BUT I WOULD LIKE TO EXPRESS MY SUPPORT FOR ITEM 13, AND THE -- ALSO THE PUBLIC RESTROOM ITEM. I CAN'T REMEMBER WHICH ONE THAT IS AT THE MOMENT. AND I WOULD LIKE TO CALL ON BERKELEY'S CITY COUNCIL TO SHOW THE SAME CONSCIENCE IN OTHER MATTERS AS WITH -- AS WITH THE PROTECTION OF OUR MARINE WILD -- WILDLIFE, YOU KNOW, AND I THINK YOU KNOW WHAT I AM TALKING ABOUT. SO PLEASE AGENDIZE THE PJC.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENTS.

>> AND VOTE YES ON ITEM 13.

>> STAFF: OUR NEXT SPEAKER IS CHERYL. CHERYL, YOU SHOULD BE ABLE TO SPEAK.

>> I WILL BE RIGHT THERE.

>> MAYOR ISHII: I THINK MAYBE WE SHOULD MOVE ON TO NEXT COMMENT UNLESS YOU ARE PREPARED TO SPEAK.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> YEAH, I AM WAS IN A STORE SO I WAS WALKING OUTSIDE. THIS IS ITEM NOT ON THE AGENDA.

>> MAYOR ISHII: ITEMS ON THE AGENDA. YOU HAVE 37 SECONDS LEFT OF YOUR TIME.

>> ALRIGHT WELL-YOU ALL SHOULD -- IT'S INTERESTING HOW YOU ARE GET THE MEETINGS OVER SO QUICKLY. IT'S NOT EVEN 7:00. BUT FREE PALASTINE AND PASS RESOLUTION -- PASS THE RESOLUTION. I KNOW US NOT ON THE AGENDA. FREE PALESTINE, THANK YOU.

>> STAFF: THAT WAS OUR FINAL SPEAKER ON ZOOM.

>> MAYOR ISHII: THANK YOU. IS THERE A MOTION TO APPROVE THE CONSCIOUS CALENDAR?

>> SO MOVED.

>> SECOND.

>> MAYOR ISHII: UNLESS THERE ARE ANY OBJECTIONS FROM COUNCILMEMBERS, WE CAN ALL BE RECORDED AS AYE. YES. OKAY. THANK YOU SO MUCH. WE ARE MOVING ON TO THE ACTION CALENDAR. FOR THE ACTION CALENDAR TODAY WE HAVE TWO PUBLIC HEARINGS AND SO I WOULD LIKE TO PASS IT ON TO OUR CITY MANAGER TO INTRODUCE OUR STAFF PRESENTATIONS, PLEASE.

>> STAFF: THANK YOU, MAYOR. YOU CAN SIT AT THE TABLE HERE. GIVE THEM A MINUTE TO GET SITUATED HERE. I WILL TALK WHILE YOU ARE WALKING UP HERE. EXCUSE ME, I WILL PASS IT TO OUR HEALTH HOUSING AND COMMUNITY SERVICES DIRECTOR SCOTT GILMAN WHO CAN INTRODUCE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

THE TEAM AND THE ITEM AND JOIN THEM.

>> STAFF: I WILL STAND UP HERE WHILE THEY ARE GETTING SET UP. I AM SCOTT GILMAN, HHCS DIRECTOR AND IT'S MY PLEASURE TO INTRODUCE THEM TONIGHT. THIS HAS BEEN A MULTI-DEPARTMENT PROJECT. REALLY THIS IS THE FINAL STAGES OF A LOT OF WORK THAT'S HAPPENED OVER THE PAST THREE YEARS. THIS WAS AS I SAID, CROSS DEPARTMENTAL BETWEENS HHCS, THE PLANNING DEPARTMENT AND THE CITY ATTORNEY'S OFFICE. WE HAVE REPRESENTATIVES FROM ALL OF THOSE DEPARTMENTS HERE TONIGHT. SOME OF THEM ARE AVAILABLE ON ZOOM LAND. CITY ATTORNEY IS HERE OBVIOUSLY, AND I WILL INTRODUCE OUR STAFF IN A SECOND. SPECIFIC TO THE -- EXCUSE ME JUST ONE SECOND HERE. IN ATTENDANCE TONIGHT FOR THIS PRESENTATION ARE ALICIA SHEN, PRINCIPLE PLANNER AND ARLENE PIERCE, DEPUTY DIRECTOR FROM THE PLANNING STATE DEPARTMENT. WE HAVE OUR TWO CONSULTANTS HERE. RICK JACOBS AND DERRICK BRAWN WITH STRATEGICALLY ECONOMICS. I WOULD LIKE TO INTRODUCE PROBABLY MY FAVORITE PERSON WHEN IT COMES TO THIS TOPIC MY RIGHT-HAND MARGOT ERNST THE MANAGER OF OUR HOUSING DEPARTMENT. MARGOT, IF YOU CAN TAKE IT AWAY AND INTRODUCE THE REST.

>> STAFF: SURE, THANK YOU, SCOTT. GOOD EVENING, MAYOR, MEMBERS OF THE COUNCIL. MY NAME IS MARGOT ERNST WHEN THE MANAGER FOR HOUSING AND COMMUNITY SERVICES. I AM PLEASED TO BE HERE IN PERSON TONIGHT TO PRESENT ON THIS ITEM. TONIGHT'S AGENDA WE HAVE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

ALREADY DONE THE INTRODUCTIONS. I WILL DO A HIGH-LEVEL BACKGROUND OF WHAT LED UP TO THIS ITEM AND THE GOALS OF THE RECOMMENDATIONS THAT WE HAVE FOR TONIGHT. I WILL HAND IT OVER TO OUR CONSULTANTS RICK AND DERRICK WHO WILL DO THE BULK OF THE PRESENTATIONS TO REVIEW THE FINDINGS, REREVIEW THE FINDINGS OF THE RESIDENTIAL FEASIBILITY STUDY AND GIVE AN OVERVIEW OF THE RECOMMENDATIONS. OF COURSE, WE WILL HAVE AN OPPORTUNITY FOR QUESTION AT THE END. I WANT TO MAKE SURE CAN EVERYONE HEAR ME OKAY? OKAY. SO I WOULD LIKE TO GIVE JUST A REALLY HIGH-LEVEL OVERVIEW OF THE INCLUSIONARY ORDINANCE AND THE OPTIONS FOR COMPLIANCE. SO OUR INCLUSIONARY ORDINANCE REQUIRES 20% OF UNITS IN A MARKET RATE DEVELOPMENT BE AFFORDABLE. HALF OF THOSE OR 10% HAVE TO BE AFFORDABLE TO VERY LOW INCOME AND THE OTHER 10% ARE AFFORDABLE TO LOW INCOME. DEVELOPERS HAVE THE OPTION OF PROVIDING THE UNITS ON-SITE OR AS AN ALTERNATIVE, THEY CAN PAY THE IN-LIEU FEE IN LIEU OF PROVIDING THE UNITS AND WE DO ALLOW FOR MIXED COMPLIANCE WHERE A DEVELOPER CAN PROVIDE A PORTION OF THE UNITS ON-SITE AND PAY OUT A PORTION, A REMAINDER OF THE FEE. THAT OFTENTIMES HAPPENS WHEN AFFORDABLE REQUIREMENTS OVERLAP WITH STATE DENSITY BONUS LAW, WHERE THE UNITS ARE REQUIRED TO BE PROVIDED ON-SITE TO ACCESS UNDER DENSITY BONUS LAW. AND BERKELEY HAS BEEN A LEADER IN THE FIELD OF AFFORDABLE HOUSING SINCE THE EARLY '80S AND IT HAD ITS INCLUSIONARY ORDINANCE GOING BACK TO

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

THE '80S, WHICH I THINK MADE IT ONE OF THE FIRST CITIES TO HAVE IT. THE IN-LIEU FEES THAT WE GET THROUGH THE INCLUSIONARY ORDINANCE WORK IN TANDEM WITH THE HOUSING TRUST FUND PROGRAM. THE HOUSING TRUST FUND PROGRAM IS THE ASSET'S TRUST FUND PROGRAM THAT SUBSIDIZES 100% AFFORDABLE PROJECTS. AND THOSE PROJECTS OFTENTIMES HAVE DEEPER AFFORDABLE THAN WHAT IS REQUIRED UNDER THE INCLUSIONARY ORDINANCE INCLUDING PERMANENT SUPPORTIVE HOUSING OR HOUSING THAT IS AFFORDABLE TO PEOPLE 30% OF MEDIAN INCOME. IN-LIEU FEES ARE COMBINED WITH OTHER LOCAL SOURCES IN THE TRUST FUND. AS WELL AS OTHER FUNDS THAT HAVE BEEN APPROVED BY COUNCIL AND THE LOCAL RESIDENTS FOR MEASURE P AND MEASURES U1 OFTENTIMES HAVE ALLOCATIONS TO THE TRUST FUND. OF COURSE, THE AFFORDABLE BOND MEASURE O, WHICH BROUGHT $135 MILLION AND THEN WE HAVE OTHER SOURCES INCLUDING STATE PERMIT HOUSING ALLOCATION. WE HAVE CURRENTLY 597 BELOW MARKET RATE UNITS. THE BELOW MARKET RATE UNITS ARE THE INCLUSIONARY UNITS THAT ARE GENERATED THROUGH THE INCLUSIONARY ORDINANCE. WE HAVE OVER 1500 HOUSING TRUST FUND UNITS AFFORDABLE UNITS IN 100% AFFORDABLE PROJECTS. 750 OF THOSE UNITS ARE STILL IN THE PIPELINE. ONE OF THE THINGS I WANTED TO MENTION ABOUT THE IN-LIEU FEES, IN-LIEU AND ITS PREDECESSOR HAS GENERATED OVER $51 MILLION FOR THE TRUST FUND SINCE 2016. AND THOSE FEES HAVE BEEN REALLY INSTRUMENTAL IN HELPING THE CITY TO LEVERAGE ITS LOCAL DOLLARS WHICH WE LEVERAGE ON A EVERY 3 TO 5

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

FOR EVERY 1 DOLLAR OF SUBSIDY THAT WE PUT INTO A PROJECT. SO IN FEBRUARY OF 2023, THE CITY COUNCIL ADOPTED A PRETTY BROAD REVISION OF THE LOCAL INCLUSIONARY HOUSING ORDINANCE. THAT REVISION WAS DUE TO A COUNCIL REFERRAL AS WELL AS CHANGES IN STATE LAW, INCLUDING AB 1505. SO THIS SLIDE SUMMARIZES THOSE CHANGES AT A VERY HIGH LEVEL. WE COORDINATED THE OWNERSHIP AND RENTAL DEVELOPMENT PROJECTS REQUIREMENTS SO THEY HAD BEEN SORT OF SEVERED AND REBEL WAS UNDER THE AFFORDABLE HOUSING MITIGATION FEE WHILE OWNERSHIP WAS UNDER THE HOUSING INCLUSIONARY ORDINANCE SO WE MERGED THOSE TO BE BOTH UNDER THE HOUSING ORDINANCE. WE CONVERTED FROM A PER UNIT FEE FOR THE MITIGATION SLASH AND/OR IN-LIEU FEE TO A PER SQUARE FOOT IN-LIEU FEE. WE ALSO KIND OF MAINTAINED THE FEE LEVEL WHEN WE DID THAT CONVERSION. WE ESSENTIALLY MAINTAINED THE 2020 FEE LEVEL PENDING THE FEASIBILITY STUDY THAT WE WILL BE TALKING ABOUT TONIGHT, TO ASSESS WHETHER THAT FEE SHOULD BE INCREASED FROM THAT BASE FOR THIS YEAR. AND WE ALSO CREATED A -- AN EXEMPTION, A TEMPORARY EXEMPTION FOR PROJECTS 5,000 SQUARE FEET AND LESS AND A TIER FEE STRUCTURE FOR PROJECTS 5,000 AND 12,000 SQUARE FEET. AT THAT TIME COUNCIL HAD DIRECTED US TO DO A FEASIBILITY STUDY TO UPDATE THE FEASIBILITY STUDY AND TO LOOK IN PARTICULAR, AT THE MIDDLE HOUSING DENSITY PROJECT TYPE TO BE ABLE TO COME BACK WITH RECOMMENDATIONS RELATED TO THAT, BASICALLY, 0 TO 12,000 SQUARE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

FOOT RANGE OF A PROJECT TYPE. SO THE PURPOSE OF THE CITY THAT WE ARE HERE TALKING ABOUT TONIGHT WAS AS I MENTIONED TO ANALYZE THE IN-LIEU FEE AND TO MAKE RECOMMENDATIONS RELATED TO THAT IN-LIEU FEE PRIMARILY FOR MIDDLE HOUSING PROJECTS. AND WE ALSO WANTED TO INCORPORATE SOME OF THE MORE RECENTLY ADOPTED COUNCIL POLICIES THAT DO HAVE -- OR POTENTIALLY COULD HAVE IMPACTS ON THE FEASIBILITY OF CONSTRUCTION BUT HADN'T YET BEEN LOOKED AT BY THE CITY BECAUSE THEY WERE RECENTLY ADOPTED. THAT INCLUDES HARD HATS AND THE BIRD SAFE BUILDING ORDINANCE, AS WELL AS PREVAILING WAGE REQUIREMENTS THAT WERE ADOPTED FOR THE CITY'S SOUTH SIDE. THE PRIMARY GOALS OF THE RECOMMENDATIONS TONIGHT ARE THE PRIMARY CITY GOALS WERE TO CONTINUE TO PRODUCE AFFORDABLE HOUSING BOTH THROUGH THE TRUST FUND AND 100% AFFORDABLE PROJECTS THROUGH THE AFFORDABLE HOUSING TRUST FUND AND ALSO AFFORDABLE HOUSING ON-SITE MIXED IN WITH MARKET RATE HOUSING DEVELOPMENTS. WE DO WANT TO SUPPORT THE FINANCIAL FEASIBILITY OF THE HOUSING MARKET WHICH IS WHY IT'S CRITICAL TO LOOK AT THE FEASIBILITY AND REPORT BACK ON THAT. WE WANT TO OFFER FLEXIBILITY AND OPTIONS FOR DEVELOPERS TO MEET THE REQUIREMENTS. AND WE ALSO WANTED TO ACHIEVE THE DIRECTION FROM COUNCIL, WHICH IS TO PROMOTE MIDDLE HOUSING PROJECT TYPES. AND I GUESS THAT SETS ME UP TO HEAD IT OVER TO DERRICK BRAWN. DERRICK BRAWN WITH STRATEGIC ECONOMICS IS HERE TO TALK ABOUT THE RESIDENTIAL FEASIBILITY STUDY AND SOME OF

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

THE FINDINGS. I ALSO FORGOT TO MENTION WE DID COME HERE TO COUNCIL IN MAY OF LAST YEAR TO DO A WORK SESSION ON THE REPORT THAT WE ARE ALSO GOING TO TALK ABOUT TONIGHT AND WE DID GET SOME ADDITIONAL DIRECTION FROM COUNCIL, WHICH IS WHAT I HAD GONE OVER, BUT I HAD FORGOTTEN TO MENTION THE MAIN MEETING, SO I WILL PASS IT OVER TO DERRICK.

>> THANK YOU, MARGOT. GOOD EVENING, MAYOR, AND COUNCILMEMBERS. DERRICK STRATEGIC ECONOMICS. WE ARE A BERKELEY-BASED CONSULTING FIRM AND LENDING ANALYSIS FOR THIS STUDY. NEXT SLIDE, PLEASE. I AM GOING TO WALK THROUGH THE FINDINGS OF THE STUDY WHICH WERE SHARED AT THE MAY STUDY SESSION LAST YEAR. SO AS PART OF OUR WORK TO EXAMINE THE UPDATE TO THE IN-LIEU FEE POLICY, WE USED SEVERAL DIFFERENT APPROACHES TO EXAMINE WHAT'S SORT OF A REASONABLE RANGE OF IN-LIEU FEES COULD BE. FIRST APPROACH TO THE ANALYSIS WAS A FINANCIAL FEASIBILITY ANALYSIS EXAMINING THE EXTENT TO WHICH DIFFERENT DEVELOPMENT PRODUCTS, RESIDENTIAL DEVELOPMENT PRODUCTS WOULD PENCIL OR FINANCIALLY FEASIBLE UNDER TODAY'S CURRENT CONDITIONS. FOR THAT WE SET UP SEVEN DEVELOPMENT PROTOTYPES OF DIFFERENT SIZES, DENSITIES, HEIGHTS, CONSTRUCTION TYPES AND TENURES. THESE INCLUDED SMALLER KIND OF MISSING MIDDLE-SIZED PRODUCTS THAT WOULD FIT WITHIN EXISTING SINGLE-FAMILY NEIGHBORHOODS ALL THE WAY UP TO SIX AND EIGHT STORY RISE PRODUCTS AS WELL AS HIGHRISE. WE EXAMINED THE FEE LEVEL THROUGH

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

THREE DIFFERENT APPROACHES. AND THEN WE ALSO EXAMINED PEER CITY POLICIES WHICH WE SHARED DURING THE MAY WORK SESSION. NEXT SLIDE, PLEASE. SO AT A HIGH LEVEL, YOU KNOW, THE FINDINGS OF THE ANALYSIS FOR THAT CURRENT DEVELOPMENT CONDITIONS REALLY LIMIT THE FINANCIAL FEASIBILITY OF ALMOST ALL THE RENTAL DEVELOPMENT PROTOTYPES THAT WE EXAMINED. SO THIS CHART HERE SHOWS THE OUTCOMES FOR THE DEVELOPMENT PROTOTYPES BUILT AS RENTAL PRODUCTS. IN ORDER FOR THEM TO BE DEEMED FINANCIALLY FEASIBLE UNDER TODAY'S CONDITIONS, THEY WOULD NEED TO ACHIEVE A PRODUCT RETURN YIELD ON COST IN THIS CASE OF 6%. ONLY FOUR-STORY GROUP LIVING ACCOMMODATION PRODUCT WOULD KERNEL PENCIL AS A RENTAL PRODUCT AND THAT IS INCLUDING THE CURRENT IN-LIEU FEE IN THAT CASE. NEXT SLIDE. WE DID FIND IN LOOKING AT SOME OF THE MISSING MIDDLE PRODUCTS, AGAIN THOSE PRODUCTS THAT WOULD FIT WITHIN SINGLE FAMILY LOTS THAT THEY ARE FINANCIALLY FEASIBLE AS OWNERSHIP PRODUCTS. SO THIS CHART HERE SHOWS A DIFFERENT APPROACH TO DEVELOPMENT RETURN. SO THIS IS RETURN ON COST. THE DASHED LINE IS THE THRESHOLD FOR PRODUCT TO PENCIL IN TODAY'S CONDITION. THE SMALL LOT FAMILY HOMES WHICH ARE THREE STAND ALONE HOMES ON A SINGLE-FAMILY SIZED LOT OR FOUR-PLEX TOWNHOME WOULD BE FINANCIALLY FEASIBLE TODAY ON PAPER. PART OF THE REASON YOU DON'T SEE A LOT OF THESE GETTING BUILT IS PARTLY BECAUSE OF OTHER CHALLENGES THAT EXIST, YOU KNOW, THE POOL OF SITES THAT

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

ARE AVAILABLE AND MAKE SENSE FOR THIS KIND OF DEVELOPMENT ARE FAIRLY LIMITED AND THE POOL OF DEVELOPERS WHO HAVE INTEREST AND EXPERTISE TO PURSUE THESE PROJECTS IS A RELATIVELY SMALL POOL OF DEVELOPERS AS WELL. SO THERE ARE SOME OTHER BARRIERS STILL TO PRODUCING THESE SMALLER KIND OF INFILL DEVELOPMENT TYPES. WE DID FIND THAT THE 10 UNIT SMALL MULTIPRODUCT THAT WE TESTED IS CURRENTLY FINANCIALLY FEASIBLE AS OWNER OR RENTAL PRODUCT TYPE. NEXT SLIDE. THOSE WERE THE FINANCIAL FEASIBILITY ANALYSIS FINDINGS. I MENTIONED WE LOOKED AT REASONABLE RANGE OF POTENTIAL IN-LIEU FEES. WE USED THREE DIFFERENT APPROACHES. THE FIRST WAS THE AFFORDABLE GAP, WHICH IS BASICALLY FROM THE DEVELOPER'S PERSPECTIVE WHAT'S THE EQUIVALENT COST TO PROVIDING THE UNITS ON-SITE. IT'S A COMPARISON BETWEEN THE GAP BETWEEN THE MARKET RATE VALUE OF A HOUSING UNIT FROM A DEVELOPER'S PERSPECTIVE, FINANCIALLY WE ARE TALKING ABOUT, MARKET RATE DEVELOPMENT OF THE HOUSING UNIT VERSUS THE AFFORDABLE UNIT WITH LOWER INCOME OR SALES PRICES. THAT ANALYSIS SHOWED THAT WHEN TRANSLATED INTO IN-LIEU FEE AMOUNT YOU WOULD BE ABOUT $118 PER SQUARE FOOT. THE SECOND APPROACH WAS THE COST PRODUCTION APPROACH IN WHICH WE LOOKED AT THE GAP BETWEEN THE AFFORDABILITY OF UNIT VERSUS THE COST TO BUILD THE AFFORDABLE UNIT TRANSLATED IN-LIEU FEE. WE LOOKED AT THE CONTRIBUTION THE CITY MAKES TOWARDS 100% AFFORDABLE HOUSING PROJECTS AND BASICALLY, THAT CONTRIBUTION IS

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

A BIT UNDER $200,000 PER UNIT TO PRODUCE THE SAME NUMBER OF AFFORDABLE HOUSING UNITS THAT THE AFFORDABLE UNITS PRODUCE EXCEPT IN THIS CASE BECAUSE YOU CAN LEVERAGE OUTSIDE FUNDING IT'S POTENTIALLY HIGHER LEVELS OF AFFORDABLE. NEXT SLIDE. WE DID FIND THAT, YOU KNOW, THE BIG DRIVER OF THE FEASIBILITY CHALLENGES FOR A LOT OF DEVELOPMENT PRODUCTS RIGHT NOW ARE BROADER MARKET CONDITIONS. YOU KNOW, IT'S AN ISSUE WHILE WE HAD ELEVATED CONSTRUCTION COSTS ABOUT TWO TO THREE YEARS AGO, FINANCING COSTS ARE VERY HIGH FOR PROJECTS AND RENTS WHILE INCREASING HAVE BEEN INCREASING AT A RATE THAT HASN'T KEPT PACE WITH THIS AND MARKET EXPECTATIONS OF RETURN ON INVESTMENT ARE MAKING THE PROJECTS INFEASIBLE. IT'S NOT THE FEES THEMSELVES. THIS CHART SHOWS WITH NO FEE CHARGED TO THOSE PROJECTS MANY WOULD STILL NOT PENCIL IN TODAY'S CONDITIONS. WHAT I WANTED TO TOUCH ON HERE THE RELATIONSHIP OF THE IN-LIEU FEE FOR DENSITY BONUS PRODUCTS. THE DEVELOPER MUST PROVIDE A CERTAIN PERCENTAGE OF UNITS AS ON-SITE AFFORDABLE INCLUSIONARY UNITS AND UNDER STATE LAW THEY GET ADDITIONAL CAPACITY THROUGH THE DENSITY BONUS. WHAT ENDS UP HAPPENING WITH THOSE PROJECTS THE UNITS PROVIDED ON-SITE COUNT TOWARDS THE LOCAL REQUIREMENTS, SO DEVELOPERS TYPICALLY PROVIDE THE ON-SITE UNITS AND THEN PAY THE RESUMING IN-LIEU FEE TO THE CITY. THAT IS ONLY BASED ON THE BASE PROJECT, NOT THE DENSITY SQUARE FEET OR PROVIDER DENSITY UNITS.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

THE IN-LIEU FEE ENDS UP MAKING VERY LITTLE DIFFERENCE OVERALL TO THE FEASIBILITY OF THOSE PROJECTS BECAUSE IT'S RELATIVE TO THE SIZE OF THE PROJECT IT'S VERY LIMITED. NEXT SLIDE. I ALSO WANT TO TOUCH ON THE HARD HATS ANALYSIS THAT WE PERFORMED. THIS IS A TANGENT FROM WHAT WE WERE JUST DISCUSSIONS. HARD HATS POLICY IS A LABOR STANDARD POLICY. IT REQUIRES CONTRACTORS ON PROJECTS TO MAKE HEALTH CARE CONTRIBUTIONS FOR EMPLOYEES AND ALSO TO SATISFY APPRENTICESHIP REQUIREMENTS. IN MAY LAST YEAR WE PRESENTED THE RESEARCH AND WE SHOWED POTENTIALLY RIGHT NOW FOR SOME DEVELOP PRODUCTS, THERE COULD BE A POTENTIAL INCREASE IN HARD COSTS, THAT'S LABOR AND MATERIALS COSTS FOR DEVELOPMENT PROJECTS, AND WE EXAMINED, WHEN YOU COMBINE HARD HATS AND BIRD SAFE GLASS, THIS CHART SHOWS THE IMPACT ON THE FINANCIAL FEASIBILITY OF THOSE PROJECTS. WHAT WE FOUND FOR THAT WORK IS, YOU KNOW, THE APPRENTICESHIP REQUIREMENTS ARE RELATIVELY READILY MET AND INEXPENSIVE, BUT THE HEALTHCARE PREQUALIFICATION REQUIREMENT CURRENTLY LIMITS THE POOL OF CONTRACTORS WHO CAN MEET THAT REQUIREMENT AND THE COST IMPACTS COULD POTENTIALLY BE HEIGHTENED FOR THE TIME BEING WHILE THERE ARE SO FEW CONTRACTORS WHO CAN MEET THOSE REQUIREMENTS. HOWEVER, THAT MIGHT CHANGE OVER TIME AS MORE CONTRACTORS COME INTO COMPLIANCE WITH HARD HATS. WE MET WITH LABOR REPRESENTATIVES AFTER THE MAY WORK SESSION. WE ULTIMATELY WANT TO RECOGNIZE A FEW THINGS ABOUT THIS. OUR STUDY

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

WAS SIMPLY A MEANS OF INCORPORATING THIS POLICY INTO OUR DEVELOPMENT FINANCIAL FEASIBILITY ANALYSIS AS THESE ARE ADOPTED POLICIES. IT IS NOT A STUDY OF THE BROADER BENEFITS OF THIS POLICY AND SO THERE'S TWO SUGGEST SHEENS HERE AND ONE OF IT'S GOING TO BE VERY HARD TO EXACTLY DIAL IN THE COST IMPACTS OF THE POLICY BECAUSE THERE HAVE NOT BEEN PRODUCTS MOVING FORWARD UNDER IT YET. OUR SUGGESTION THIS IS SOMETHING POTENTIALLY TO BE RESTUDIED AS DEVELOPMENT PICKS UP IN THE CITY AND THEN A MORE COMPREHENSIVE STUDY COULD EXAMINE COST IMPACTS AS WELL AS BENEFITS OF THE POLICY. NEXT SLIDE. SO I AM GOING TO WRAP UP WITH A SUMMARY HERE OF SOME OF THE CONSIDERATIONS OF ADJUSTING THE IN-LIEU FEE BEFORE RICK GETS INTO THE RECOMMENDED ADJUSTMENTS TO IT. SO JUST A TO RECAP A FEW POINTS, MOST OF THE DEVELOPMENTS ARE CURRENTLY FINANCIALLY INFEASIBLE. THEREFORE FROM ONE PERSPECTIVE THEY CAN'T SUPPORT THE CURRENT IN-LIEU FEES. THE IN-LIEU FEES ARE NOT DRIVING THE FEASIBILITY AT THE SAME TIME. IT'S BROADER MARKET CONDITIONS. SOME PROJECTS DO MOVE FORWARD DUE TO UNIQUE CIRCUMSTANCES. THEY MAY HAVE GOTTEN STARTED EARLIER OR HAVE LOWER LAND COSTS. THERE ARE DEVELOPMENT PROPOSED RIGHT NOW. I ALSO WANT TO EMPHASIZE IN-LIEU FEES ARE A CRITICAL SOURCE OF AFFORDABLE HOUSING FRONTING FOR THE CITY. DEVELOPMENT PRODUCTS THAT PAY THE FULL IN-LIEU FEE, THE ONES THAT DON'T PROVIDE INCLUSIONARY AND IN-LIEU FEE DO TEND TO BE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

SMALLER, MISSING MIDDLE PROJECTS. BECAUSE THEY ARE PAYING THE FULL FEE, THEY TEND TO BE MORE SENSITIVE TO CHANGES IN THE FEE. BUT IN CONTRAST TO THAT, A LOT OF THE PROJECTS COMING INTO THE CITY NOW THAT ARE LARGER HAVE STATE DENSITY BONUS PRODUCTS AS I MENTIONED EXPLAINED, THEY TEND TO PAY A PRETTY LOW OVERALL FEE.

>> GOOD EVENING MAYOR, COUNCILMEMBERS. THANKS FOR HAVING ME. I AM RICK WITH STREET LEVEL ADVISOR. I WILL QUICKLY RECAP THE RECOMMENDATIONS THAT WE CAME TO. I WANT TO SAY WHAT WE ARE RECOMMENDING IS MODERATE AND MINOR CHANGES TO THE IN-LIEU POLICY. WE ARE PROPOSING THAT YOU KEEP THE IN-LIEU WHERE IT IS NOW, BUT SLIGHTLY CHANGE THE WAY YOU ADDRESS THE SMALLER PROJECTS. SO THE FIRST THING, WE ARE SUGGESTING THAT YOU APPLY INSTEAD OF THE TABLE THAT WE SAW BEFORE WHERE THE FEE IS PHASED IN FOR SMALL PROJECTS AND IT STEPS UP INCREMENTALLY AS THE PROJECT GETS LARGER, WHAT WE HAVE SEEN IS THAT THAT CREATES BREAK POINTS WHERE THERE IS KIND OF AN INCENTIVE FOR PROJECTS TO GO UNDER THE LIMIT. SO PARTICULARLY, FOR A 4999999 SQUARE FOOT PROJECT PAYS NO FEE AND 501 SQUARE FOOT PROJECT WOULD PAY $38 PER SQUARE FOOT ON ALL THE SQUARE FEET, SO IT'S A BIG DIFFERENCE. SO WE ARE SUGGESTING THAT YOU APPLY THE FEE TO ALL OF THE SQUARE FEET AT THE SAME LEVEL RATHER THAN IN TIERS WITH A SLIGHT EXCEPTION. NEXT SLIDE. WHICH IS THAT WE ARE SUGGESTING TO BENEFIT, TO MAKE IT -- TO MAKE THE IMPACT OF THE PROGRAM LIGHTER

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

ON SMALLER PROJECTS, THE SORT OF MISSING MIDDLE INCOME PROJECTS, WE ARE RECOMMENDING THAT YOU EXEMPT THE FIRST 5,000 SQUARE FEET OF FLOOR AREA FOR EVERY PROJECT OR FOR EVERY PROJECT THAT IS USING THE FULL IN-LIEU OPTION. WHAT THAT WOULD MEAN IS THAT A 499 SQUARE FOOT PROJECT WOULD PAY NOTHING BUT A 501 SQUARE FOOT PROJECT WOULD PAY JUST FOR THAT ONE SQUARE FOOT. THEY WOULD PAY $56 FOR THAT ONE FOOT. AS PROJECTS GOT LARGER, THE FEE WOULD GO UP AND THE DISCOUNT THAT GETS APPLIED FROM EXEMPTING 5,000 SQUARE FEET STAYS THE SAME. IT'S SAME VALUE FOR EVERY PROJECT, BUT IT'S A SMALLER PERCENTAGE SO AS A LARGER PROJECT IT WILL MAKE VERY LITTLE DIFFERENCE. BUT FOR A 10,000 SQUARE FOOT PROJECT, THAT'S A 50% DISCOUNT IN THE FEE. IT'S A SLIGHTLY MORE ELEGANT WAY OF ACHIEVING THE SAME RESULT FOR PHASING THE FEE IN FOR SMALLER PROJECTS, BUT IT DOESN'T DISINCENTIVIZE FOR OTHERS TO DO SMALLER PROJECTS AND YOU WON'T HAVE A TABLE IN THE CODE. WE ARE ALSO SUGGESTING THAT THIS REDUCTION IN THE FEE, THIS 5,000 SQUARE FOOT EXEMPTION WOULD ONLY BE AVAILABLE TO PROJECTS THAT ARE USING THE FULL IN-LIEU FEE OPTION. SO RIGHT NOW THE ORDINANCE ALLOWS A DEVELOPER TO CHOOSE BETWEEN A MENU OF DIFFERENT WAYS OF COMPLYING. THEY CAN PROVIDE UNITS ON-SITE. THEY CAN PAY THE IN-LIEU FEE OR THEY CAN DO MIXED COMPLIANCE, SOME UNITS ON-SITE, SOME FEE. THEY CAN DEDICATE LAND. THERE ARE OTHER OPTION. WE ARE SUGGESTING ONLY THE PROJECTS THAT ARE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

CHOOSING THE IN-LIEU FEE OPTION THAT WOULD GET THIS DISCOUNT. ONE OF THE ADVANTAGES OF THAT IS THAT YOU ARE ALLOWING PROJECTS THAT ARE PROVIDING ON-SITE UNITS IN ORDER TO GET THE DENSITY BONUS GENERALLY, TO PAY ARE YOU A REMAINDER FEE RATHER THAN PROVIDING 20% OF THE UNITS ON-SITE. IT'S A CONCESSION TO FEASIBILITY. WE ARE SUGGESTING THOSE PROJECTS DON'T NEED THIS 5,000 SQUARE FOOT DISCOUNT IN GENERAL AND THERE IS NO REASON THAT YOU HAVE TO PROVIDE THAT SAME BENEFIT TO PROJECTS THAT ARE CHOOSING THAT OPTION. BY ALLOWING THE 5,000 SQUARE FOOT DISCOUNT BE AVAILABLE TO PROJECTS THAT ARE CHOOSING THE FEE OPTION ENTIRELY, YOU ARE NOT ONLY LIMITING SMALL PROJECTS, BUT YOU ARE TARGETING THAT MEANS WE ARE NOT GIVING AWAY 5,000 SQUARE FEET IN EVERY PROJECT. THE MAJORITY OF PROJECTS THAT COME THROUGH ARE THE LARGER PROJECTS DOING MIXED COMPLIANCE, SO THEY WOULDN'T GET AN EXTRA BENEFIT JUST AS THEY DON'T RIGHT NOW. THEY DON'T BENEFIT FROM THE 5,000 SQUARE FOOT EXEMPTION NOW EITHER. NEXT SLIDE. WE ARE SUGGESTING THAT YOU KEEP THE CURRENT $56.25 PER SQUARE FOOT FEE IN PLACE. THE STUDY THAT WE DID SUGGESTED THAT THERE MIGHT BE ROOM TO JUSTIFY A HIGHER FEE AS DERRICK WAS SHOWING, BUT BECAUSE OF THE MARKET CONDITIONS WHERE NOTHING IS FEASIBLE, WE CAN'T TEST FOR YOU WHAT THE IMPACT OF A HIGHER FEE WOULD BE ON FEASIBILITY. SO WE THINK THE MOST PRUDENT THING TO DO WOULD BE TO LEAVE THE FEE TO A LOWER LEVEL. THE PREDICT YOU

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

GET FROM KEEPING THE FEE STEADY AND NOT CHANGING IT OVER TIME IS REALLY VALUABLE TO DEVELOPERS. SO WE ARE SUGGESTING BECAUSE THE MARKET IS DOWN, THIS ISN'T THE TIME TO INCREASE THE FEE. IT MAY BE THAT IN THE NEXT GO AROUND WHEN YOU DO A STUDY LIKE THIS IN A STRONGER MARKET YOU FIND THAT THE HIGHER FEE MIGHT BE BOTH FEASIBLE AND JUSTIFIABLE, BUT RIGHT NOW WE DON'T RECOMMEND THAT YOU RAISE THE FEE. NEXT SLIDE. WE ARE ALSO SUGGESTING THAT YOU CONTINUE THE CURRENT POLICY OF INDEXING THE FEE TO CHANGES IN CONSTRUCTION COSTS. AND WHAT THIS DOES IS AS DERRICK POINTED OUT THE FEE RIGHT NOW IS APPROXIMATELY ENOUGH FOR THE CITY TO REPLACE EACH UNIT THAT DOESN'T GET BUILT ON-SITE TO BE BUILT OFFSITE IN 100% AFFORDABLE PROJECT. THAT'S A GREAT THING. IF WE WEREN'T ABLE TO SAY THAT IT MIGHT BE HARD TO JUSTIFY HAVING THE FEE AT THE LEVEL THAT IT IS, BUT BECAUSE THAT WORKS WE ARE NOT GIVING UP AFFORDABLE HOUSING WHEN WE ALLOW DEVELOPERS TO PAY THE FEE. WE ARE GETTING A DIFFERENT KIND OF HOUSING AND THEY ARE NOT IN SITE IN THE MARKET RATE BUILDINGS, SO THERE IS A TRADEOFF THERE. BY INDEXING AT THE CONSTRUCTION COSTS, WE WILL ENSURE THAT CONTINUES TO BE TRUE OVER TIME. WHEN CONSTRUCTION COSTS RISE, THEY RISE FOR THE AFFORDABLE PROJECTS THAT ARE USING THE FEE TO SUBSIDIZE. THE SCHEDULE THAT YOU HAVE RIGHT NOW CALLS FOR THE FEE TO GO UP THIS COMING JULY. IT INCREASES EVERY TWO YEARS, WE ARE RECOMMENDING THAT YOU ALLOW IT TO INCREASE AS IT'S

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

SCHEDULED TO THIS COMING JULY. THE RESOLUTION THAT ASKED US TO DO THIS STUDY SET A TIME LIMIT FOR US TO COME BACK AND REPORT BACK ON THIS. WE ARE SAYING STICK WITH THAT SCHEDULE AND INCREASE IT OF JULY OF THIS YEAR, SO YOU WILL END UP WITH A FEE THAT'S SLIGHTLY ABOVE THE $56 BECAUSE CONSTRUCTION COSTS HAVE GONE UP. NEXT SLIDE. MARGOT WILL HANDLE THE LAST RECOMMENDATION. THANK YOU. SORRY.

>> THANK YOU. SO THIS LAST RECOMMENDATION IS REALLY A REQUEST OR A RECOMMENDATION TO REVERT BACK TO THE POLICY THAT WE HAD IN PLACE PRIOR TO 2020, THE APRIL 2023 REVISION, WHICH WAS TO ALLOW OR TO DEDICATE 80% OF THE VERY LOW-INCOME UNITS TO SECTION -- TO BE OFFERED FIRST TO SECTION 8 VOUCHER HOLDERS AND SHELTER PLUS CARE VOUCHER HOLDERS. THAT WAS THE ORIGINAL POLICY IN PLACE PRIOR TO 2023. IN 2023 WE INCREASED IT FROM 80% TO 100%. STAFF IS RECOMMENDING TO GO BACK TO THE ORIGINAL POLICY AND KEEP THAT SORT OF 20% DIRECTLY AVAILABLE FOR NON-VOUCHER HOLDERS WHO ARE VERY LOW INCOME TO BE ABLE TO ACCESS THE UNITS. THEY MAY ALSO BE AVAILABLE UNDER THE 80% SET ASIDE BECAUSE THE REQUIREMENT IS REALLY TO OFFER IT TO VOUCHER HOLDERS FIRST IF NOBODY ELECTS TO RENT IT, THEN AT SOME POINT IT WOULD GO BACK OPEN TO THE GENERAL POPULATION WHO IS INCOME QUALIFIED. AND -- OH, YEAH, THE ONE LAST POINT, IT ALSO DOES SUPPORT MORE HOUSEHOLDS THAT WOULD BE QUALIFY FOR OUR PREFERENCE POLICY. WE DON'T APPLY THE PREVENES

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

POLICY TO THE SECTION 8 AND SHELTER PLUS CARE LEASE-UPS, BUT WE DO APPLY IT TO ALL OF THE OTHER AFFORDABLE HOUSING LEASE UPS. I THINK THAT'S CONCLUDES OUR PRESENTATION. OH, NO, IT DOES NOT. I AM GOING TO HAND IT BACK TO YOU. I CAN DO IT. THAT'S FINE. SO WE HAD -- AFTER WE GOT THE FINAL FROM COUNCIL IN MAY, WE DID FOLLOW UP WITH THE ADDITIONAL DIRECTION THAT WE RECEIVED AND THEN WE SETTLED ON OUR FINAL RECOMMENDATIONS AND WE WANT TO PLANNING COMMISSION AND THE HOUSING ADVISORY COMMISSION TO REVIEW THE RECOMMENDATIONS WITH THEM AND GET THEIR FEEDBACK. AND WE DID GET FEEDBACK FROM THE PLANNING COMMISSION WAS ESSENTIALLY, THEY SUPPORTED STAFF'S RECOMMENDATIONS, WHICH IS WHAT RICHARD WENT OVER TONIGHT AND THE HOUSING ADVISORY COMMISSION ALSO SUPPORTED STAFF'S RECOMMENDATION WITH A COUPLE OF ADDITIONS. ONE WAS THEY RECOMMENDED EXCLUDING DETACHED HOMES FROM THE 5,000 SQUARE FOOT EXEMPTION. THIS WOULD ESSENTIALLY BE ANY DETACHED SINGLE-FAMILY HOME WOULD BE EXEMPT FROM THE 5,000 SQUARE FOOT EXEMPTION. I THINK IN THIS CASE, IT WOULD BE ANY DETACHED SINGLE-FAMILY HOME THAT IS PART OF A MULTIUNIT DEVELOPMENT. IS THAT CORRECT?

>> NO, THEY DID NOT ADD THAT. IT WAS JUST STRUCTURAL IF IT WAS ATTACHED.

>> OKAY. SO IT WOULD BE EXTENDING THE REQUIREMENT THEN, TO A SINGLE-FAMILY HOME. AND THEN THE SECOND RECOMMENDATION FROM THE HOUSING ADVISORY COMMISSION WAS TO CONDUCT AN ECONOMIC

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

FEASIBILITY STUDY WITHIN THREE YEARS OF THE MIDDLE HOUSING ZONING AMENDMENTS BEING ADOPTED BY THE CITY COUNCIL, WHICH ACTUALLY REMINDS ME I DID WANT TO NOTE IN RELATIONSHIP TO THIS PRESENTATION, WHEN WE WERE TALKING ABOUT MIDDLE HOUSING DENSITY PROJECTS, WE ARE TALKING ABOUT TWO TO 18 UNITS AND THE MIDDLE HOUSING ZONING AMENDMENTS THAT ARE COMING TO COUNCIL I THINK IS TWO TO NINE? IS THAT RIGHT? I WILL CONFIRM THAT. SO THOSE WERE THE RECOMMENDATIONS THAT WE GOT FROM THE COMMISSIONS, AND I AM GOING TO PULL UP THIS SLIDE THAT GIVES, LIKE, AN OVERVIEW OF ALL THE RECOMMENDATIONS THAT I CAN KEEP UP FOR ANY QUESTIONS THAT YOU MAY HAVE. I WILL JUST NOTE AGAIN THAT WE DO HAVE OUR COLLEAGUES FROM THE PLANNING DEPARTMENT AVAILABLE TONIGHT TO HELP WITH ALL OF THE LAND USE RELATED QUESTIONS. AGAIN, THAT'S AYE LEAN PEARSON THE DEPUTY DIRECTOR FOR PLANNING AND SHEN WHO IS A PRINCIPLE PLANNER AND CLOSE COLLEAGUES WHO WORKED ON ALL OF THIS PROJECT WITH US.

>> MAYOR ISHII: THANK YOU. I WANT TO FORMALLY OPEN THE PUBLIC HEARING, AND I WAS PLANNING PUBLIC COMMENTS FIRST BEFORE COUNCIL QUESTIONS, BUT, EXCUSE ME. I GUESS I CAN -- I WILL TAKE QUESTIONS FROM THE COUNCIL FIRST. SORRY. COUNCILMEMBER TREGUB AND YES, JUST QUESTIONS ONLY JUST TO BE CLEAR. SO, THANK YOU.

>> I. TREGUB: THANK YOU SO MUCH. QUESTIONS ONLY. WHAT DO YOU THINK ABOUT THIS? NO. YEAH, SO THIS IS KIND OF IN NO PARTICULAR

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

ORDER, BUT I WANTED TO MAKE SURE I FULLY UNDERSTAND YOUR RECOMMENDATION ABOUT THE DISCOUNT AT THE, YOU KNOW -- UP TO THE FIRST 5,000 SQUARE FEET FOR MISSING MIDDLE. HOW DOES THAT COMPARE OR CONTRAST TO THE EXISTING PHASE APPROACH ON COST? DID YOU DO A SENSITIVITY ANALYSIS AROUND THAT? I UNDERSTAND THE PREDICTABILITY PART. I AGREE. I AM JUST TRYING TO UNDERSTAND, YOU SAID IT WAS LARGELY CLASS NEUTRAL.

>> IT'S DIFFERENT FOR DIFFERENT PROJECTS. DERRICK --

>> YES. SO IT WILL VARY BY PROJECTS, AND THEN STAFF REPORT THERE WAS A TABLE THAT SHOWED DIFFERENT OUTCOMES FOR DIFFERENT DEVELOPMENT PROTOTYPES UNDER THE EXISTING FEE VERSUS THE CURRENT FEE, I AM SORRY THE EXISTING FEE VERSUS THE PROPOSED FEE STRUCTURE. ONE OF THE DIFFERENCES YOU SEE THIS COMING INTO PLAY FOR EXAMPLE, AS A PROJECT THAT DOES NOT USE THE DENSITY BONUS, AND IT'S PAYING THE FULL FEE, SO IT WOULD RECEIVE THE EXEMPTION AND IT IS OVER 5,000 SQUARE FEET. THAT'S REALLY WHERE THIS WILL MAKE A LOT OF DIFFERENCE FOR PROJECTS. PROJECTS UNDER 5,000 SQUARE FEET DO NOT PAY A FEE. FOR THIS EXEMPTION FOR THE FIRST 5,000 SQUARE FEET THEY STILL DO NOT PAY A FEE. IT'S FOR PROJECTS OVER 5,000 SQUARE FEET AND NOT CHOOSING MIXED CONTINUE POLICE IN, THEY WILL BE PAYING A SLIGHTLY LOWER FEE. JUST ONE EXAMPLE, WE HAD THE TEN-UNIT SMALL MULTILEVEL BUILDING A 9,250 SQUARE FOOT PROJECT. UNDER THE CURRENT FEE, IT WOULD PAY A FEE LEVEL OF

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

$4848.75, THAT 48.75 GOES DOWN. MOST OF THOSE PROJECTS ARE IT'S NOT GOING TO MAKE A DIFFERENCE BECAUSE THEY DON'T QUALIFY FOR THE EXEMPTION.

>> I. TREGUB: THANK YOU. NEXT QUESTION IS I WAS HOPING YOU COULD JUST PROVIDE FURTHER ELUCIDATION ON, YOU KNOW, THE DISTINCTION BETWEEN TWO TO 18 UNITS UNDER THIS DEFINITION OF MISSING MIDDLE VERSUS THE TWO TO NINE BEING CONTEMPLATED BY THE MISSING MIDDLE ORDINANCE THAT IS COMING BACK TO US LATER THIS YEAR. I WANTED TO PARTICULARLY TRY TO UNDERSTAND WHETHER THERE ARE IMPLICATIONS IN THE ECONOMICS IN THE 10 TO 18 ZONE? AND ALSO JUST WHAT WAS THE BASIS OF CUTTING IT OFF AT NINE VERSUS 18?

>> DO YOU WANT --

>> WELL, ONE THING I CAN SAY IS THAT -- WHETHER WE DID THIS FEASIBILITY STUDY, I THINK THE EXACT RANGE OF THE UNITS FOR THE MISSING MIDDLE ZONING AMENDMENTS HADN'T BEEN IDENTIFIED, AND SO WE WERE SELECTING A RANGE JUST BASED ON DIFFERENT PRODUCT TYPES. I WILL LET DERRICK ANSWER A LITTLE BIT MORE ABOUT THE TWO TO 18.

>> TWO TO EIGHT.

>> SORRY, TWO TO EIGHT WILL BE THE OTHER ONE.

>> I THINK FOR PURPOSES OF OUR STUDY, EVEN THOUGH WE SORT OF STARTED FROM A HIGHER ASSUMED RANGE OF NUMBER OF UNITS IN A MISSING MIDDLE PRODUCT TYPE, WHAT WE ACTUALLY STUDIED FELL FOR THE MOST PART UNDER TEN UNITS. THE ACTUAL DEVELOPMENT PROTOTYPES

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

WE LOOKED AT HAD FOUR UNITS ON-SITE OR TEN UNITS ON THE SITE, SO WE GOT PRETTY CLOSE TO THE PROTEIN TYPES CONTEMPLATED IN THAT, OR AT LEAST THE SIZE RANGE CONTEMPLATED IN THE OTHER ORDINANCE AS WELL.

>> JUST TO ADD, WE WEREN'T STUDYING THE IMPACT OF THE POTENTIAL ZONING CHANGES ON FEASIBILITY BECAUSE THEY WEREN'T DRAFTED WHEN WE STARTED. AND WHAT WE FOUND ABOUT THE MARKET WAS BROADLY APPLICABLE. RIGHT? AN EIGHT-UNIT PROJECT AND TEN-UNIT PROJECT ARE FEASIBLE IN THE SAME SORT OF WAY AND THERE ISN'T A MAGIC LINE FOR MOST OF THE PRODUCT TYPES. I DON'T THINK IF WE STARTED WITH THE CURRENT PROPOSAL WE WOULD HAVE COME TO ANY DIFFERENT CONCLUSIONS THAN WHAT WE CAME TO.

>> I. TREGUB: THANK YOU. I AM ALMOST DONE. I HAVE A COUPLE OTHERS. THE NEIGHBORHOOD PREFERENCE POLICY, I WANTED TO UNDERSTAND IS THAT IN EFFECT CITY WIDE RIGHT NOW? I THOUGHT IT WAS JUST CONTEMPLATED AT THE ADELINE CORRIDOR. COULD YOU PROVIDE MORE INFO?

>> SURE THE CITY'S AFFORDABLE HOUSING PREFERENCE POLICY, WHICH WAS ADOPTED, I THINK ABOUT A YEAR AGO, I THINK, IT WAS IN JULY, WHETHER IT WAS LAST YEAR OR THE YEAR BEFORE, I AM NOT SURE, BUT IT APPLIES ACTUALLY, TO ALL OF THE BMR UNITS EXCEPT THOSE THAT ARE LEASED UP THROUGH THE VOUCHER HOLDERS. IT APPLIES TO ALL OF OUR HTF PROJECTS AT VARYING DEGREES. SO WE DO A FAIR HOUSING

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

ANALYSIS AND IT DEPENDS ON WHAT FUNDING SOURCES ARE COMING INTO THE PROJECT AND WE HAVE TO GET APPROVAL SOMETIMES FROM THE STATE FOR THE PERCENT. SO THE ONE WE ARE APPLYING IT TO OUR FIRST HTF PROJECT RIGHT NOW, WHICH IS THE MODEL MILLER SHREK PROJECT AND I BELIEVE WE ARE DOING APPLYING IT TO 75% OF THOSE UNITS AND ACTUALLY, RICK, WORKED ON THAT PROJECT AS WELL, SO IS THAT WHAT YOUR RECOLLECTION IS? 75%.

>> I. TREGUB: 25% WHAT?

>> OF THE UNITS WILL BE LEASED UP USING THE CITY'S PREFERENCE POLICY [INDISCERNIBLE]

>> I. TREGUB: THANK YOU. AND I WAS CURIOUS WHAT WAS THE BASIS FOR THE HACKS RATIONALE. IT WAS CLEAR TO ME IN READING THE REPORT WHETHER THE COMMISSION WAS REFERRING TO JUST A GIANT SINGLE-FAMILY HOME OR WHETHER IT WAS LIKE THE THREE HOMES -- DETACHED HOMES ON A LOT THAT YOU DESCRIBED.

>> YEAH, THERE WAS A DISCUSSION AT HACK ABOUT VARIOUS SCENARIOS AND THERE SEEMED TO BE A SENSE, YOU KNOW, IT MIGHT BE UNDESIRABLE FROM A POLICY POINT OF VIEW TO BE GIVING A BENEFIT TO LARGE SINGLE-FAMILY HOMES, BUT THE SPECIFIC PROPOSAL WAS TO ALSO NOT ALLOW THE EXEMPTION FOR A LOT THAT'S DEVELOPED WITH MULTIPLE SINGLE FAMILY HOMES THAT ARE NOT TOUCHING, BUT TO GIVE THAT EXEMPTION TO ESSENTIALLY, THE SAME SIZE PROJECT IF THEY ARE ATTACHED. I THINK THE THEORY WAS THAT THE ATTACHED PROJECT IS

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

INHERENTLY MORE AFFORDABLE THAN THE DETACHED PRODUCT. I DON'T KNOW THAT WE HAVE DATA ON THAT, BUT IT SEEMS SENSIBLE.

>> I. TREGUB: OKAY. AND THEN I THINK MY LAST QUESTION IS JUST -- I DON'T KNOW WHICH OTHER NEIGHBORING JURISDICTIONS ARE NOW DOING THIS ON A PER SQUARE FOOT BASIS OR MAYBE ALL OF THEM DUE TO CHANGE IN STATE LAW, BUT I WAS JUST CURIOUS HOW THE 56.25 PER SQUARE FOOT WITH THE FIRST 5,000 SQUARE FEET BEING EXEMPT, HOW THAT COMPARES TO OAKLAND OR SOME OTHER NEIGHBORING JURISDICTIONS?

>> YEAH, SO WE DID LOOK AT THOSE JURISDICTIONS. I AM LOOKING AT THE FIGURE 12 THAT HAS THAT INFORMATION. IT'S A LITTLE DIFFICULT TO MAKE DIRECT COMPARISONS TO MANY COMMUNITIES BECAUSE AS YOU ALLUDED TO THEY HAVEN'T SWITCHED TO PER SQUARE FOOT BASIS. THE ONES WE COULD TELL BAITS PER SQUARE FOOT, BERKELEY'S IN-LIEU FEE IS SUBSTANTIALLY HIGHER THAN MANY OTHER COMMUNITIES. WE ARE LOOKING AT ONES FOR EXAMPLE, FREMONT $27 PER SQUARE FOOT. HEYWOOD -- LIVERMORE $16. I WILL SAY THIS ALSO, BERKELEY HAS HIGHER INCLUSIONARY REQUIREMENTS THAN MOST OF THOSE COMMUNITIES. THEY HAVE A -- IT'S A DEEPER LEVEL OF AFFORDABLE FOR RENTAL PROJECTS AND 20% IS A PRETTY HIGH REQUIREMENT RELATIVE TO ALL OF THOSE OTHER COMMUNITIES. SO IT IS REASONABLE THAT BERKELEY WOULD HAVE A HIGHER IN-LIEU FEE AS WELL THAT DROPS DOWN THAT.

>> I JUST WANTED TO ADD TO THAT THERE HAVE BEEN A NUMBER OF

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

CITIES IN THE BAY AREA THAT SWITCHED FROM PER UNIT TO PER SQUARE FEET AND NONE HAVE GONE THE OTHER WAY. THE REASONING FOR THAT BY DOING IT PER UNIT YOU ARE SORT OF INCENTIVIZING A CERTAIN TYPE OF DEVELOPMENT. BY DOING IT PER SQUARE FOOT YOU ARE NOR NEUTRAL ON THE CHARACTERISTICS OF THE SORT OF DEVELOPMENT. THERE IS NOT A WAY TO DESIGN YOUR PROJECT TO GET A LOWER FEE.

>> I. TREGUB: THANK YOU SO MUCH.

>> MAYOR ISHII: OKAY. THANK YOU. MOVING ON TO COUNCILMEMBER BARTLETT.

>> B. BARTLETT: THANK YOU. GREAT WORK AGAIN AS ALWAYS. YOUR STEADY GUIDANCE THROUGH THE YEARS HAS REALLY AFFECTED US REALLY WELL. 25% DECREASE IN RENT I HEARD TODAY. QUESTION REGARDING THE SORT OF OMNIBUS COST DRAGS AND LABOR SCARCITY, I AM WONDERING IF YOU HAVE TAKEN INTO ACCOUNT, YOU PROBABLY DID TAKE INTO ACCOUNT THE L.A. FIRES AND HOW THE MATERIALS ABSORPTION DOWN IN L.A. AND THE LABOR ABSORPTION AS WELL IF THAT'S FACTORED INTO THESE EQUATIONS?

>> IT'S NOT. THE SHORT ANSWER IS BECAUSE THOSE FIRES HAD NOT HAPPENED YET WHEN WE DID THE ANALYSIS INITIALLY SINCE THIS DOES DATE BACK TO LAST YEAR FOR PARTS OF THE. THE LONG ANSWER IS I WOULD HESITATE TO SPECULATE ON THE MAGNITUDE OF THOSE IMPACTS. WE KNOW THEY ARE COMING. THEY ARE LIKELY TO COME. THERE WILL BE A LOT OF REBUILDING IN L.A. AND A LOT OF LABOR NEEDED AND A LOT

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

OF MATERIALS NEEDED, BUT RIGHT NOW WE JUST DON'T HAVE VERY GOOD INFORMATION ABOUT IT.

>> YEP, THANK YOU.

>> MAYOR ISHII: MOVING ON TO COUNCILMEMBER LUNAPARRA.

>> C. LUNAPARRA: THANK YOU SO MUCH FOR THE PREGNANT. I HAVE ONE QUICK QUESTION. I AM WONDERING IF STAFF HAS CALCULATED WATER DIFFERENCE IS IN HOUSING TRUST FUND REVENUE IN THE PROPOSED FEE STRUCTURE COMPARED TO THE EXISTING FREE STRUCTURE.

>> I CAN IF YOU WANT.

>> WE HAVEN'T DONE A DETAILED CALCULATION BECAUSE IT REALLY WILL DEPEND ON THE NUMBER OF EXACT TYPE OF PROJECTS AND WHAT SIZE THEY ARE. BUT THE THING I WOULD WANT TO KNOW IF I WERE IN YOUR SEAT, THE SMALL PROJECTS THAT CHOOSE THE FEE ONLY OPTION ARE A VERY SMALL PERCENTAGE OF THE TOTAL FEE REVENUE THAT THE CITY REALIZES. MOST OF THE REVENUE THAT SUPPORTS THE TRUST FUND COME FROM LARGER PROJECTS. IF I WERE DOING THE PROJECTIONS OF WHAT THE CITY'S TRUST FUND REVENUE WOULD BE, I WOULDN'T GUESS. WE WOULD STILL BE GUESSING.

>> I WOULD ADD ONE COMMENT TO THAT, IS THAT THE FEE -- YOU KNOW, WE HAVE MULTIPLE OPTIONS FOR COMPLIANCE INCLUDING ON-SITE AND FEE, SO I WOULD SAY REGARDLESS OF THESE CHANGES, THE REVENUE WE RECEIVE IS -- IS MORE IMPACTED BY CHANGES IN STATE LAW, PARTICULARLY CHANGES TO DENSITY BONUS LAW. WHEN DENSITY BONUS

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

LAW USED TO BE THAT THE HIGHEST KIND OF BONUS YOU COULD GET WAS BY A 35% BONUS WHEN YOU PROVIDED 11% AFFORDABLE TO VERY LOW INCOME. AND THEN IN RECENT YEARS THAT LAW WENT UP TO 15% AFFORDABLE TO VLI GOT YOU A 15% BONUS. THAT MAKES A MUCH BIGGER IMPACT ON THE FEES THAT WE RECEIVE.

>> C. LUNAPARRA: THANK YOU.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER KESARWANI.

>> R. KESARWANI: THANK YOU VERY MUCH, MADAM MAYOR. THANK YOU FOR THE PRESENTATION. I WILL ASK MY QUESTIONS RIGHT NOW AS WE ARE SUPPOSED TO DO. SO I WANTED TO ASK YOU WHEN A DEVELOPER IS DOING SOME OR ALL UNITS ON-SITE, THIS IS SORT OF AN ADJACENT QUESTION TO THIS PRESENTATION, HOW DO WE CALCULATE HOW MANY UNITS BELOW MARKET RATE THAT THEY NEED TO PROVIDE SINCE WE HAVE NOW SHIFTED TO THE SQUARE FOOT CALCULATION?

>> YEAH, SO WHEN WE ARE DOING JUST THE CALCULATION FOR THE UNITS, WE ARE DOING THAT ON A UNIT CALCULATION. SO WE ARE CALCULATING PRESENT PERCENT OF THE TOTAL NUMBER OF UNITS IN THE BASE PROJECT. SO IF THE BASE PROJECT IS 100 UNITS, 20% OF THAT IS 20 UNITS, 20 UNITS NEED TO BE AFFORDABLE AND 10 AT VLI AND 10 AT LI. WHEN WE ARE DOING THE AFFORDABLE UNITS THE RUFA ISN'T RELEVANT. IT ONLY COMES INTO PLAY WHEN THEY PAY THE FEE. IT ISN'T INTUITIVE BECAUSE THE FEE IS ON ALL OF THE RUFA IN THE ENTIRE PROJECT RUFA STANDS FOR RESIDENTIAL UNIT -- THAT'S THE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

TERM FOR THE PER SQUARE FOOT. THAT ONLY COMES INTO PLAY WITH THE FEE IF THEY DO MIXED COMPLIANCE. WE ACCOUNT FOR THE TOTAL OBLIGATION THAT ACCOUNTINGS FOR. IF 10% IS ON-SITE THEN IT'S 50% OF THE OBLIGATION. THEN WE --

>> R. KESARWANI: OKAY. SO THEN WHEN -- WE DON'T NEED TO GET INTO THE WEEDS ON THIS. I DO HAVE ONE FOLLOW UP WHICH IS THE BMR UNITS THEN, ARE WE LOOKING AT THE SIZE OF THOSE? SO THEY CAN DO ALL STUDIOS AND THAT STILL COUNTS?

>> OH, NO, WE DO LOOK AT THE SIZE.

>> R. KESARWANI: OKAY.

>> WE LOOK AT THE NUMBER OF BEDROOMS.

>> R. KESARWANI: THAT'S HOW YOU ARE DOING IT.

>> THE NUMBER OF BEDROOMS IN THE BMR HAS TO MIRROR THE NUMBER OF BEDROOMS IN THE REST OF THE PROJECT.

>> R. KESARWANI: PROPORTIONALLY.

>> I WANTED TO ADD ONE THING WHAT MAKES IT HARD TO HOLD ALL OF THIS IN YOUR HEAD, IF YOU IMAGINE A BUILDING WITH 100 STUDIOS, IF WE GET 20 AFFORDABLE STUDIOS, WE ARE AT 20%. IF YOU IMAGINE A BUILDING WITH 100 TWO BEDROOMS AND WE GET 22 BEDROOMS, WE ARE AT 20%. WHERE THERE WAS A PROBLEM IF BOTH OF THOSE BEDROOMS IF THEY PAID THE FEE, WOULD HAVE PAID THE SAME FEE. THAT WOULD CREATE A DISINCENTIVIZE FOR SOMEONE TO BUILD A PROJECT WITH A LOT OF STUDIOS BECAUSE THEY WOULD HAVE TO PAY THE SAME FEE THAT THE TWO

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

BEDROOM PAID. BOTH OF THOSE WERE PROBLEMATIC.

>> R. KESARWANI: YES, AND I RECALL THOSE STRATEGIES PRIOR TO OUR SHIFTING TO THIS. SO I THINK THIS IS A VERY GOOD IMPROVEMENT THAT TREATS ALL PROJECTS FAIRLY. SO I AM HAPPY WITH WHERE WE ARE WITH THIS. I WANTED TO ASK ON THE SECONDS RECOMMENDATION FROM THE HOUSING ADVISORY COMMISSION TO CONDUCT AN ECONOMIC FEASIBILITY STUDY WITHIN THREE YEARS OF MIDDLE HOUSING ZONING AMENDMENTS, I AM ASSUMING THEY ARE TALKING ABOUT THE IN-LIEU FEE FOR MIDDLE HOUSING. I WANTED TO GET YOUR REACTION TO THAT. DO YOU THINK THAT WOULD BE SOMETHING WORTHWHILE? THE REASON WHY I AM ASKING IS BECAUSE I THINK MYSELF AND OTHERS ARE WANTING MIDDLE HOUSING TO GET A TOE HOLD AND WE ARE NOT SURE IF THE 5,000 EXEMPTION IS THE RIGHT EXEMPTION. SO IF YOU COULD RESPOND TO STUDYING THIS AGAIN ONCE THE ORDINANCE IS HOPEFULLY ADOPTED.

>> IT'S AGAIN, YOU KNOW WE ARE DOING THE STUDY AT A TIME WHEN A LOT OF PROJECTS DOESN'T PENCIL AND THE CITY IS CONSIDERING ADOPTING SOME CHANGES. MEANWHILE, WE ARE DOING THIS EXEMPTION FOR THE SMALLER PROJECTS, SO I THINK THAT THIS RECOMMENDATION WAS MADE JUST IN SORT OF THE SPIRIT OF HAVING AN OPPORTUNITY AS CONDITIONS HAVE CHANGED AND AS NEW POLICIES AND ORDINANCES HAVE TAKEN AFFECT TO SEE IF THERE ARE ADDITIONAL ADJUSTMENTS NEEDED BY DOING THAT MIDDLE HOUSING FEASIBILITY ANALYSIS.

>> I WOULD ADD IF YOU LOOKED AT DERRICK'S SLIDES, WHAT WE FOUND

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

WAS THAT THE MIDDLE HOUSING PROTOTYPES WERE ACTUALLY MORE PROFITABLE, NOT LESS PROFITABLE. AND SO, YOU KNOW, THERE IS AN ARGUMENT IN THE LONG RUN IT MIGHT TURN OUT THAT THOSE PRODUCTS ARE ACTUALLY VIABLE AND COULD AFFORD TO PAY AND SUPPORT AFFORDABLE HOUSING. THE ARGUMENT FOR LOWERING THE FEE IS NOT THAT WE FOUND EVIDENCE THAT THE MIDDLE DEVELOPMENT TYPES CAN'T SUPPORT THE FEE. IT'S THAT THAT MARKET ISN'T ESTABLISHED AND YOU WANT TO GIVE IT A TOE HOLD. YOU AS A COUNCIL ARE TRYING TO PRIME A MARKET AND SO THAT'S THE ARGUMENT. WE DID NOT FIND THAT THAT MARKET ISN'T VIABLE FINANCIALLY. IT'S JUST THERE IS A WHOLE LOT OF OR THE FACTORS, LIKE, DERRICK WAS MENTIONING THAT ARE STANDING IN THE WAY OF THOSE DEVELOPMENT TYPES. THAT WOULD BE ONE OTHER THING IF YOU APPLIED THE FULL FEE NOW. THE ARGUMENT FOR STUDYING AFTER YOU HAVE MORE DEVELOPMENT AND YOU SEE SOME TRACK RECORD IT MIGHT MAKE SENSE TO THINK WHETHER THEY NEED A DISCOUNT BUT WE CAN'T DO THAT NOW.

>> JUST TO CLASSIFY TWO OUT OF THREE WERE FINANCIALLY FEASIBLE. THE SMALL PROJECT DID NOT PENCIL RIGHT NOW.

>> R. KESARWANI: SO IT SOUNDS LIKE THERE COULD BE SOME VALUE IN COMING BACK THREE YEARS AFTER THE MIDDLE HOUSING ORDINANCE IS ADOPTED AND CHECKING IN AGAIN ON THE VARIOUS MIDDLE HOUSING PROTOTYPES AND SEEING WHERE THEY ARE AT? THANK YOU.

>> MAYOR ISHII: THANK YOU. OTHER QUESTIONS FROM COUNCIL? OKAY. I

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

AM GOING TO OPEN UP FOR PUBLIC COMMENTS, BUT I JUST WANT TIE-BREAK SURE IT'S CLEAR IT'S ABOUT WHAT WE ARE TALKING ABOUT HERE AND WE ARE GOING TO TAKE A 10-MINUTE BREAK AFTER THIS PRESENTATION ENDS, SO I AM HAPPY TO SPEAK WITH FOLKS ABOUT OTHER MATTERS INCLUDING THE CEASEFIRE, SO JUST MAKE SURE THAT IT'S ABOUT THIS, THAT'S ALL. WE HAVE A LOT OF STAFF HERE.

>> STAFF: IT WE PLEASE GET A SHOW OF HANDS OF HOW MANY PEOPLE PLAN TO SPEAK ON THIS ITEM? GREAT. THANK YOU VERY MUCH.

>> I AM NUGET TO AND I AM THE SHARE OF THE BERKELEY'S TENANTS UNION. I AM SPEAKING ON MY OWN CAPACITY HERE. THE REASON IS I REMEMBER THE NIGHT THIS PASSED IN THE CITY COUNCIL. THERE WAS AN ARGUMENT MADE AND I REMEMBER COUNCILMEMBER BARTLETT AND OTHERS ECHOING THIS ARGUMENT THAT TO UNDUE THE REDLINING AND THE EXCLUSIONARY COVENANTS OF THE PAST, WE NEED TO MAKE THIS A SITUATION THAT WILL BENEFIT THOSE MEMBERS OF OUR COMMUNITY THAT HAVE BEEN LEFT OUT, DRIVEN OUT AND GENTRIFIED TO RETURN AS A RESULT OF THIS MISSING MIDDLE THAT WE ARE OPENING UP ALL OF THESE OPPORTUNITIES TO BUILD. AND SO IF WE ELIMINATE OR REDUCE THE EXCLUSIONARY HOUSING FEES, THERE WON'T BE A POSSIBILITY OF HAVING MORE FOR MORE PEOPLE AVAILABLE THROUGHOUT THE COMMUNITY AT ALL INCOME LEVELS. PLUS, I DON'T UNDERSTAND WHY YOU WOULD MOVE IT OFFSITE SO THAT YOU COULD HAVE MAYBE LIKE A TENEMENT FOR ALL THE POOR PEOPLE AND THROW THEM IN THERE AND NOT MIX YOUR

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

POPULATION IF THAT'S WHAT THE CASE OF THIS WAS TO UNDUE THOSE REDLINING COVENANTS AND EXCLUSIONARY ZONING. THANK YOU, FREE PALESTINE.

>> IN LOOKING AT THE LANGUAGE HERE, THERE IS A SECTION 8 AND SHELTER PLUS CARE VOUCHERS ALSO DEFINED VASH VOUCHERS AND OTHER HOUSING SUBSIDIES? BECAUSE INITIALLY WHEN THIS WENT EIGHT OR NINE YEARS AGO, ONLY SECTION 8 WAS RECEIVING AT THE FIRST RATING AND THEN IT WAS EXPANDED TO SHELTER PLUS SUBSIDIES, SO I WANT TO MAKE SURE IT'S BROAD LANGUAGE. AND ALSO SINCE WE ARE EXPECTING THE FEDERAL GOVERNMENT TO DECIMATE SOMETHING IN SOME FORM, IS THIS PROTECTED SO THAT WE COULD MAKE THE LANGUAGE SOMEWHAT BROADER? WHAT IF SHELTER PLUS IS ELIMINATED, FOR EXAMPLE? THEN WE HAVE TO CREATE SOMETHING ELSE THAT WOULD BE A HOUSING SUBSIDY OR SOME OTHER MANIFESTATIONS OF HOUSING SUBSIDIES TAKES -- IS WHAT ENDS UP BECOMING THE FUTURE. AS I AM HEARING THE MISSING MIDDLE DISCUSSED, BUT IS THE MISSING MIDDLE REALLY GOING TO IDENTIFY HOUSING ALSO FOR PERSONS WHO WOULD FALL IN THIS VERY LOW-INCOME CATEGORY? ARE WE GOING TO HAVE FIVE-PLEXES WHERE SOMEONE CAN BE ON-SITE WITH HOUSING? FOR A VERY LOW-INCOME PERSON? ARE WE WORKING WITH THE MISSING MIDDLE WITH THAT? REGARDING THE AFFORDABLE HOUSING PREFERENCE POLICY, BY THE -- MANY OF THE INDIVIDUALS, PARTICULARLY PERSONS EXPERIENCING HOMELESSNESS ARE ALREADY COVERED UNDER THIS

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

CATEGORY. THE DEFINITION OF SHELTER PLUS CARE IS THAT SOMEONE HAS TO BE EXPERIENCING HOMELESSNESS AND EITHER HAVE SERIOUS MENTAL ILLNESS, SUBSTANCE USE OR HIV POSITIVE, SECTION 8 PERSONS ARE ALSO VOUCHER HOLDERS ARE GENERALLY DISABLED, LOW INCOME OR EXTREMELY LOW-INCOME PERSONS, DISPROPORTIONATELY PERSONS OF COLOR, SO THEY ARE COVERED UNDER THIS. THANK YOU.

>> MAYOR ISHII: THANK YOU. JUST STAFF, I KNOW THERE ARE SOME QUESTIONS AND ISSUES THAT ARE BEING BROUGHT UP, I AM HOPING YOU CAN CLARIFY SOME THINGS AFTER THIS.

>> HI, GLENN TURNER BERKELEY RESIDENT DISTRICT 5. I SALUTE YOU FOR EXEMPTING THE SMALLER AREAS BECAUSE SMALLER UNITS, THERE IS SO MUCH RED TAPE THAT IF PEOPLE HAVE AN ODD SIZE SITUATION, IT'S GOOD TO SEE FLEXIBILITY IN THE RED TAPE MAYBE COULD GO PINK OR SOMETHING. BUT I SALUTE THAT. I AM ALSO EXTREMELY CONCERNED ABOUT THE ECONOMY, AND THE FACT THAT A LOT MORE PEOPLE I KNOW ARE GETTING, YOU KNOW, EVICTED FROM THEIR HOMES IN BERKELEY THAT THEY HAVE LIVED IN WHERE LIKE A MOTHER AND HER DISABLED SON, THEY ARE BOTH DISABLED, WHERE CAN SHE GO? YOU KNOW, SHE'S SECTION 8, BUT GETTING ON THE LINE FOR SECTION 8 IS, LIKE, YOUR HONOR SHE GREW UP HERE. I KNOW THIS FAMILY REALLY WELL AND I AM VERY CONCERNED THAT SHE'S NOT THE ONLY ONE AND AS THE ECONOMY TANKS, I THINK SO YOU SHOULD GO BACK TO THE 100% AND NOT DO WHO IS THE 20% WHO IS GOING TO BENEFIT? BUT THE PEOPLE WHO NEED

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

SECTION 8, THE PEOPLE WHO ARE MOST DISABLED, THE PEOPLE WHO NEED VOUCHERS, THOSE ARE THE ONES WE SHOULD SAVE THESE FOR. I HAVE TWO CONCERNS. ONE IT'S GOOD TO MAKE THEM EXEMPTION, THE OTHER ONE IS DON'T CLOSE OUT THE POOR. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> HELLO, MADAM MAYOR, COUNCILMEMBERS, THANK YOU. I REALLY WANT TO THANK YOU FOR REFERRING TO RENTAL UNITS AS PRODUCTS. AS A TENANT AS A MEMBER OF THE BERKELEY TENANT'S UNION, WE ARE CONSUMERS IN AN INDUSTRY AND MANY TIMES THERE ARE SOME MEMBERS ON THE COUNCIL HERE WHO DON'T BELIEVE THAT TENANTS SHOULD HAVE ANY PROTECTIONS BUT WE ARE CONSUMERS IN A RENTAL HOUSING INDUSTRY AND THERE ARE MANY, MANY INDUSTRIES THAT HAVE REGULATIONS, SO I REALLY LIKE THAT YOU REFER TO THESE AS PRODUCTS BECAUSE A BUSINESS OWNER WILL HAVE THESE PRODUCTS AND THEN THEY WILL BE CHARGING US TENANTS VERY HIGH RENTS TO BE ABLE TO USE THEIR PRODUCTS. SO I WANT TO THANK YOU FOR THAT. I ALSO WANT TO MENTION, I KNOW THAT THE THIRD GENTLEMAN THERE MENTIONED THAT THE IN-LIEU FEES WERE $2 BELOW, I THINK YOU MENTIONED $58. THAT MONEY ACTUALLY GOES TO THE TRUST FUND THAT WOULD GO TO PAY FOR OPPORTUNITY -- [INDISCERNIBLE] WOULD EVER GO TO THE CITY COUNCIL. IT GOES TO HELP PAY FOR THE AFFORDABLE HOUSING THAT WE SO NEED IN BERKELEY. I ALSO WANT TO SAY THE MISSING MIDDLE HOUSING, WHICH IS REALLY MISSING FILLING IN THESE SPOTS, IT'S

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

NOTHING ABOUT MIDDLE INCOME AS SOME PEOPLE HAVE REFERRED TO THEM. WE DO NEED AND I ASK YOU TO CONSIDER THAT THOSE UNITS HAVE AN AFFORDABLE COMPONENT IN THERE BECAUSE, YOU KNOW, THESE ARE ALL GOING TO BE LUXURY UNITS AS YOU MENTIONED IN YOUR REPORT AND THE LAST THING WE NEED MORE OF IS LUXURY UNITS IN BERKELEY BECAUSE WE HAVE PLANET LUXURY UNITS IN BERKELEY. PEOPLE ARE PAYING LUXURY PRICES FOR SOCIAL UNITS. THANK YOU VERY MUCH.

>> MAYOR ISHII: THANK YOU. ARE THERE COMMENTS ONLINE?

>> STAFF: YES, WE HAVE SOME ZOOM COMMENTS. OUR FIRST SPEAKER IS KELLY.

>> THANK YOU. THESE RECOMMENDATIONS WERE BETTER THAN I EXPECTED. AND WITH THAT, I STILL HAVE SOME COMMENTS. I THINK THAT THIS EXEMPTION OF 5,000 SQUARE FEET REALLY SHOULD BE LOWER, MAYBE TO 2500 SQUARE FEET WITH THE 5,000 SQUARE FOOT EXEMPTION THAT COULD STILL BE, LIKE, 10 TO 12 STUDIO APARTMENTS GIVEN THE SIZE OF STUDIO APARTMENTS IN THE PROJECTS THAT I SEE AT ZAB AND THE DESIGN REVIEW COMMITTEE. I ALSO HEARD BEING ONLINE IT'S HARD TO TELL WHO IS SPEAKING ALL THE TIME, ONE WAS THE IN-LIEU FEE WAS CALCULATED ON THE BASE PROJECT AND NOT THE WHOLE PROJECT AND THEN I HEARD IT WAS CALCULATED ON THE ENTIRE PROJECT, BUT I WAS PRESENT WHEN THE 10% FOR VERY LOW INCOME AND 10% FOR LOW INCOME WAS PASSED ORIGINALLY, AND THAT WAS TO BE ON THE ENTIRE PROJECT. AND I QUICKLY SCANNED THE ORDINANCE AND I DON'T SEE ANYTHING IN

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

THE ORDINANCE, IN THE BERKELEY ORDINANCE THAT EXCLUDES CALCULATING THE IN-LIEU FEE -- THAT EXCLUDES THE BONUS SECTION OF A PROJECT AND LIMITING THE IN-LIEU FEE TO ONLY TO THE BASE, SO HOPEFULLY THAT CAN BE CLARIFIED THIS EVENING. I ALSO REALLY DISCOURAGE YOU FROM EXEMPTING THE DETACHED SINGLE-FAMILY HOMES. BERKELEY IS WORKING TO DECREASE, YOU KNOW, THE BUILDING OF SINGLE-FAMILY HOMES IN BERKELEY AND TO DO MORE LARGER PROJECTS. AND I DON'T THINK WE WANT TO BE SUPPORTING THE BUILDING OF MCMANSIONS IN BERKELEY. I THINK THAT'S CONTRARY TO WHERE WE ARE, AND SO EVEN THOUGH I HEARD HOW YOU THINK THAT THESE SINGLE-FAMILY HOMES ARE GOING TO BE ATTACHED TO ONE ANOTHER, THIS STILL WOULD EXEMPT MCMANSIONS AND I THINK THAT IS A.

>> STAFF: THANK YOU FOR YOUR COMMENTS.

>> AND I CAN'T SEE THE CLOCK BECAUSE WE STILL HAVE UP THE DISPLAY.

>> STAFF: OH, YEAH, YOUR TIME IS ACTUALLY UP BUT THANK YOU FOR YOUR COMMENTS AND I WILL MAKE SURE THAT THEY ADDRESS THAT QUESTION.

>> STAFF: THE NEXT SPEAKER IS MONI.

>> THANK YOU FOR YOUR ATTEMPT TO MOTIVATE DEVELOPERS TO BUILD MORE AFFORDABLE HOUSING HOWEVER, I HAVE A COUPLE OF CONCERNS. FIRST I AGREE WITH THE PRIOR SPEAKER. SECOND, I THINK WE ARE GIVING TOO MANY DISCOUNTS AND EASY OUTS FOR DEVELOPERS AS

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

OPPOSED TO 10 TO 15 YEARS AGO WHEN I USED TO GO TO EVERY PLANNING MIDDLE RENA NUMBERS SAID WE HAD ZERO PERCENT OF OUR GOALS MET FOR AFFORDABLE HOUSING FOR LOW AND MIDDLE-INCOME FAMILIES AND INDIVIDUALS, SO WE LOST THAT OPPORTUNITY. WE ARE BEHIND THE EIGHT BALL AND WE NEED TO CATCH UP AND WE FAILED TO PROVIDE HOUSING FOR TEACHERS, FOR RETAIL WORKERS FOR PEOPLE WHO WORK DOUBT ABOUT IT, SOME FOR THE CITY WITH CURRENT PRICES AND WE DO NEED AFFORDABLE HOUSING. I DO ADDRESS YOU GO BACK TO THE DRAWING BOARD FOR SINGLE FAMILY HOMES BEFORE 1999 ARE RENT CONTROLLED OFTEN OWNED BY BLACK OR BROWN PEOPLE. THE PROJECT WILL DISPLACE SOME OF THOSE SINGLE-FAMILY HOMES. I THINK THAT'S NEEDS TO BE BROUGHT INTO ACCOUNT AS WELL. ADDITIONAL STUDIES AND BETTER IDEAS TO ENSURE THAT YOU PROTECT TO LOW AND LOWER LOW-INCOME FAMILIES PLEASE AND INDIVIDUALS, THANK YOU.

>> STAFF: OUR NEXT SPEAKER IS SHAINA.

>> ONE MOMENT.

>> STAFF: SHAINA YOU SHOULD BE ABLE TO SPEAK OR NOT SHAINA.

>> STILL NOT SHAINA. I CAN'T FIND WHERE TO CHANGE MY NAME. I AM -- MY NAME IS DAN. IT'S A LITTLE HARD TO FOLLOW AT TIMES BECAUSE THE PRESENTERS -- THERE IS A LOT OF JARGON IN IT AND IT'S NOT REALLY ACCESSIBLE TO PEOPLE WHO MIGHT NOT NECESSARILY, YOU KNOW, WORK IN, LIKE, DEVELOPMENT AND THAT KIND OF THING AND, LIKE, THERE IS, LIKE, THESE PRODUCTS IN PENCIL, I HAVE NO IDEA

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

WHAT THAT MEANS. AND MAYBE I AM JUST NOT VERY SMART, BUT, LIKE, I DON'T KNOW -- IT'S HARD TO KNOW WHAT THE CITY IS DOING IF, LIKE, EVERYONE IS USING JARGON THAT'S NOT REALLY EVER EXPLAINED. THAT'S ALL.

>> MAYOR ISHII: THANK YOU. POINT WELL TAKEN.

>> STAFF: THAT WAS OUR FINAL SPEAKER.

>> MAYOR ISHII: DO YOU WANT TO ADDRESS SOME OF THOSE COMMENTS? I JUST WANT TO MAKE SURE I THINK THERE WAS MAYBE NEED FOR CLARIFICATION BRIEFLY AND I AGREE WITH THE COMMENTS, TOO, WE WANT TO MAKE SURE THAT WE ARE USING LANGUAGE THAT'S CLEAR AND ACCESSIBLE AND THANK YOU FOR EXPLAINING SOME OF THOSE ACRONYMS AND THINGS LIKE THAT.

>> I WILL SEE -- WAIT A SECOND WHILE I GO THROUGH MY NOTES.

>> THE COMMENT ABOUT THE DENSITY BONUS UNITS BEING EXCLUDED FROM THE IN-LIEU FEE CALCULATION IS A SITUATION WHERE THE STATE LAW IS SUPERCEDING THE CITY'S REQUIREMENTS. SO THE CITY ORDINANCE DOESN'T AS FAR AS I KNOW ANYTHING ABOUT EXEMPTING THE BONUS UNITS. THE STATE HAS MANDATED THAT THEY BE EXEMPTED AND THE COURTS HAVE UPHELD THAT AND SO THE CITY IS APPLYING THAT. AND THAT JUST MEAN THAT SOMETIMES A PROJECT IS PAYING IN-LIEU FEE ON ALL OF THE SQUARE FEET, BUT WHEN IT'S A DENSITY BONUS PROJECT IT'S NOT ALL OF THE SQUARE FEET. IT'S ALL OF THE BASE SQUARE FEET.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> MAYOR ISHII: THANKS FOR THAT.

>> YEAH.

>> I THINK THERE ARE A FEW QUESTIONS RELATED TO THE VOUCHERS AND THAT RECOMMENDATION.

>> YEAH, I GUESS WHAT I CAN CLASSIFY RELATED TO THE VOUCHERS, YOU KNOW, THE VERY LOW INCOME UNITS, INCLUSIONARY UNITS AND I WILL ALSO ECHO WHAT THE GENTLEMAN WITH THE WRONG NAME ON THE SCREEN WAS SAYING ABOUT -- I CAN'T REMEMBER HIS NAME, BUT USING ACCESSIBLE LANGUAGE, SO I REALLY APPRECIATE THAT FEEDBACK. I THINK THAT'S A GOOD REMINDER PARTICULARLY FOR THOSE OF US WHO ARE WORKING WITH THIS LANGUAGE ON THE DAY-TO-DAY THAT WE NEED TO REMEMBER TO DO THAT. I APPRECIATE THAT FEEDBACK AND I WILL TRY TO DO IT HERE IN MY ANSWER, TOO. THE UNITS THAT ARE VERY LOW INCOME, WHICH IS A DEEPER AFFORDABLE THAN THE LOW-INCOME UNITS, THOSE UNITS ARE AVAILABLE TO VERY LOW-INCOME PEOPLE, SO THEY ARE DEFINITELY GOING TO PEOPLE WHO QUALIFY. BUT BY REQUIRING THAT 80% OF THOSE BE OFFERED TO VOUCHER HOLDERS FIRST, IT ACTUALLY ENSURES THAT SOME OF THOSE UNITS ARE GOING TO BE PEOPLE WHO ARE MUCH LOWER THAN VERY LOW INCOME. THEY ARE ACTUALLY GOING TO BE MORE LIKELY EXTREMELY LOW INCOME WHICH IS 30% OF AMI INSTEAD OF 50% BECAUSE THE VOUCHER ALLOWS THAT UNIT TO BE ACCESSIBLE TO SOMEONE WHO OTHERWISE WOULDN'T HAVE ENOUGH INCOME TO AFFORD THE VERY LOW-INCOME UNIT. YES, I DID WANTED TO CLASSIFY ALL THE VERY

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

LOW INCOME UNITS ARE GOING TO VERY LOW INCOME HOUSEHOLDS. WHEN IT GOES TO A HOUSEHOLD VOUCHER HOLDER THEY ARE VERY LOW INCOME AND USUALLY IT'S BELOW VERY LOW INCOME.

>> THERE WAS A QUESTION ABOUT FLEXIBILITY TO THE VOUCHER OR PROGRAMS CHANGED FEDERALLY?

>> THAT'S A GOOD QUESTION.

>> MAYOR ISHII: THERE WAS A QUESTION ABOUT WHAT HAPPENS IF THE VOUCHER PROGRAMS CHANGE AT THE FEDERAL LEVEL AND IF THERE WOULD BE FLEXIBILITY.

>> WE WOULD HAVE TO COME BACK TO COUNCIL IF WE NEEDED REVISIONS OR AMENDMENTS TO ACCOMMODATE CHANGES AT THE FEDERAL LEVEL THAT WE ARE AWARE OF. I THINK THERE WAS A QUESTION ABOUT VASH VOUCHERS. I AM NOT SURE. WE NEED TO LOOK INTO THAT. WE SPECIFICALLY CALL OUT SHELTER 8 AND 2ND PLUS CARE, BUT WE DON'T CALL OUT ANY OTHER TYPE OF VOUCHER. THAT SOMETHING I NEED TO LOOK INTO. WE ARE LOOKING AT ALL OF OUR PROGRAMS AND TRYING TO ANTICIPATE WHAT WE NEED TO PREPARE FOR IN CASE OF CHANGES AT THE FEDERAL LEVEL AND THAT IS SOMETHING WE ARE ACTIVELY EXPLORING, SO THIS WOULD BE ANOTHER EXAMPLE OF WHERE WE NEED TO BE LOOKING INTO THAT. I CAN ADD A TINY BIT TO THAT, MAYOR BECAUSE I WAS THE ONE THAT BROUGHT THAT SHELTER PLUS CARE DIVISION TO COUNCIL SHORTLY AFTER COUNCILMEMBER ARREGUIN AND BECAME MAYOR ARREGUIN AND PROPOSED IT AND HE SUPPORTED IT. I CAN SAY I WASN'T

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

CONTEMPLATING ANY OTHER KIND OF VOUCHER. THAT WAS WELL-BEFORE THE FEDERAL ADMINISTRATION WAS THREATENING INTO A POTENTIAL TYPES OF VOUCHERS, SO I DO AGREE WITH MARGOT THAT'S SOMETHING WE SHOULD LOOK AT BECAUSE IF WE HAD A LITTLE FLEXIBILITY IN THERE, IT MIGHT COME IN HANDY. ALTHOUGH IF SHELTER PLUS CARE VOUCHERS GO AWAY, WE HAVE MUCH BIGGER PROBLEMS ON OUR HANDS. WE HAVE SOMEWHERE ON THE ORDER OF 300 PEOPLE CURRENTLY WHO WOULD BE HOMELESS IF NOT FOR THOSE VIRTUES IN BERKELEY. ANYWAY, WE SHOULD LOOK AT THAT.

>> ALSO I WILL ADD JUST TO EMPHASIZE THIS IS HEAVY FROM AN BID, IF THE VOUCHER PROGRAMS WENT AWAY ALL ALTOGETHER THE VLI UNITS WILL BE OFFERED AND LEASED UP BY VERY LOW-INCOME HOUSEHOLDS. 80% OFFERED TO VOUCHER FIRST MEANS THEY HAVE OPPORTUNITY FIRST. IF THERE IS NOT A VOUCHER HOLDER THAT LEASES THAT UNIT MEANS IT IS AVAILABLE TO ANY INCOME QUALIFIED PERSON.

>> MAYOR ISHII: THANK YOU. YOU USED AN ACRONYM EARLIER AMI.

>> THANK YOU, AND THEN GO AHEAD. SO AMI REFERS TO AREA MEDIAN INCOME. WHEN WE ARE PRICING AFFORDABLE HOUSING AT DIFFERENT LEVELS, THE LEVELS ARE BASED ON THE PERCENT OF THE MEDIANS AREA OF THE THAT'S BEING LOOKED AT.

>> MAYOR ISHII: THANK YOU. I FEEL THAT IS SOMETHING THAT PEOPLE GET VERY CONCERNED ABOUT BECAUSE PEOPLE ARE TO BE ABLE TO AFFORDABILITY AND THEY WANT TO FIND WHAT THOSE TERMS MEAN. THANK

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

YOU FOR DOING THAT. I WANTED TO CLASSIFY WHY DO WE DO IN-LIEU FEES? YOU MENTIONED IT EARLIER, BUT I WANTED TO SAY BRIEFLY IT HELPS US LEVERAGE FUNDING FOR LOW AND VERY LOW-INCOME HOUSING. THAT IS WHY WE NEED THOSE FUNDS BECAUSE IT HELPS US ACCESS MORE SOURCES OF FUNDING ON DIFFERENT COUNTY, STATE, LEVEL, ETC. I JUST WANT TO MAKE SURE I SAID THAT. IS THERE A MOTION?

>> [INDISCERNIBLE]

>> MAYOR ISHII: MOTION TO CLOSE THE PUBLIC HEARING. IF THERE'S NO VOUCHER HOLDER THAT LEASES THAT UNIT, IT IS AVAILABLE TO ANY INCOME-QUALIFIED PERSON AND IT WOULD GO BASED ON OUR PREFERENCE POLICY PRIORITY.

>> MAYOR ISHII: THANK YOU. YOU USED AN ACRONYM EARLIER, A.M.I. IF YOU COULD ALSO SAY THAT?

>> THANK YOU.

>> MAYOR ISHII: GO AHEAD.

>> REFERS TO THE AREA MEDIAN INCOME. WHEN WE ARE PRICING AFFORDABLE HOUSING AT DIFFERENT LEVELS, THEY ARE DETERMINED BASED ON THE PERCENT OF THE AREA MEDIAN INCOME. THAT'S BEING LOOKED AT.

>> MAYOR ISHII: THANK YOU. I FEEL THAT IS SOMETHING PEOPLE GET CONCERNED ABOUT, WHEN WE ARE TALKING ABOUT AFFORDABILITY, THEY WANT TO UNDERSTAND WHAT THOSE TERMS MEAN. THANK YOU FOR DOING THAT. SOMEONE ASKED WHY DO WE DO IN-LIEU FEES. YOU MENTIONED

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

EARLIER BUT I WANTED TO SAY IT HELPS LEVERAGE FUNDING FOR LOW AND VERY LOW-INCOME HOUSING. THAT'S WHY WE NEED THOSE FUNDS BECAUSE IT HELPS US ACCESS MORE SOURCES OF FUNDING ON DIFFERENT COUNTY/STATE, ET CETERA. I WANTED TO MAKE SURE I SAID THAT. ALL RIGHT, IS THERE A MOTION? IS THERE A MOTION TO CLOSE THE PUBLIC HEARING?

>> I. TREGUB: SECOND.

>> MAYOR ISHII: ALL RIGHT. IF THERE'S NO OBJECTIONS I WILL HAVE US LISTED AS UNANIMOUS FOR CLOSING THE PUBLIC HEARING. THANK YOU. YEP, COUNCIL DELIBERATION. COUNCILMEMBER LUNAPARRA? THANK YOU.

>> C. LUNAPARRA: THANK YOU SO MUCH FOR THIS PRESENTATION. AGAIN, I RECOGNIZE THE COMPLEXITY OF THIS ISSUE AND I'M SO GRATEFUL FOR THE CREATIVE AND THOUGHTFUL POLICY SOLUTION YOU THOUGHT OF, I THINK IT'S BRILLIANT. OUR ROLE IS TO STRIKE A BALANCE BETWEEN MAKING HOUSING FEASIBLE AND PUBLIC BENEFIT. I'M LOOKING FORWARD TO SEE HOW IT CLARIFIES WHAT WAS AN OPAQUE PROCESS. THIS NOT ONLY MAKES IT MORE FEASIBLE BUT MAXIMIZES THE CITY'S REVENUE FOR AFFORDABLE HOUSING PROJECTS. I'M OPTIMISTIC THIS WILL ALIGN WITH THE ULTIMATE GOALS CREATING NEW HOUSING, WE SO URGENTLY NEED WHILE CONTINUING TO PROVIDE BENEFIT FOR THOSE BUILDING AFFORDABLE HOUSING UNITS. I'M PREPARED TO MAKE A MOTION BUT IT WILL REQUIRE EXPLANATION. PLEASE BEAR WITH ME. I MOVE TO APPROVE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

THE STAFF RECOMMENDATION AS WRITTEN AND REFER TO STAFF AND THE CITY ATTORNEY'S OFFICE ECONOMIC AND LEGAL ANALYSIS OF EXTENDING THE IN-LIEU FEE $500 FOR 2500 SQUARE FOOT, AND RETURN TO COUNCIL AS PART OF THE BIENNIAL ADJUSTMENTS REPORT. -- THAT WAS A LOT.

>> R. KESARWANI: SECOND.

>> C. LUNAPARRA: THANK YOU. LET ME BREAK IT DOWN A LITTLE BIT. THE GOAL IS TO GATHER MORE INFORMATION ABOUT IN-LIEU FEES FOR SINGLE-UNIT DWELLINGS. THIS KIND OF GOES BACK TO THE WAY H.A.C. WAS RECOMMENDING THEIR DETACHED UNITS. BUT I DISAGREE THE WAY THEY WERE PRESENTING IT. I THINK IT'S ¶ JUST AND FAIR THAT WHEN A 25,000 SQUARE FOOT DWELLING, THE MEDIAN SIZE OF A SINGLE-FAMILY HOME IS 2700 SQUARE FEET. A FEE SHOULD BE LEVIED MOVING US TOWARD AN EQUITABLE DISTRIBUTION OF WEALTH AND ENSURING RESOURCES ARE IN A WAY TO BENEFIT EVERYONE. THIS FEE STRUCTURE IS INTENDED TO SUPPORT AFFORDABLE HIGH DENSITY AND TRANSIT ORIENTED DEVELOPMENT, WHICH I KNOW IS THE ULTIMATE GOAL OF THIS BODY. TO BETTER UNDERSTAND THE SCOPE -- IT ONLY APPLIES TO SINGLE FAMILY GREATER THAN 2500 SQUARE FEET. I'M OPEN FOR ANY QUESTIONS.

>> MAYOR ISHII: OKAY, THANK YOU VERY MUCH. ACTUALLY, COUNCILMEMBER KESARWANI, ARE NEXT IN THE QUEUE.

>> R. KESARWANI: THANK YOU VERY MUCH, THANK YOU COUNCILMEMBER LUNAPARRA FOR THE MOTION THERE. I JUST WANTED TO MAKE SOME BRIEF

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

COMMENTS. I WANTED TO CLARIFY, DURING MY QUESTIONS WHEN YOU NOTED THERE WERE TWO MIDDLE HOUSING TYPES THAT ARE FEASIBLE, YOU ARE TALKING ABOUT THE TWO OWNERSHIP MIDDLE HOUSING PRODUCTS, CORRECT? THE SMALL LOT SINGLE FAMILY, AND FOURPLEX TOWNHOMES?

>> THAT'S CORRECT.

>> R. KESARWANI: I JUST WANT TO HIGHLIGHT THAT. AND I WANT TO NOTE THAT I AUTHORED AN ITEM IN JANUARY AND I WAS VERY PLEASED TO GET UNANIMOUS SUPPORT FROM THE COUNCIL FOR OUR PLANNING DEPARTMENT TO LOOK AT REVISING TWO SECTIONS OF OUR MUNICIPAL CODE SO WE COULD DO SUBDIVISIONS OF PARCELS THAT WILL FACILITATE THESE OWNERSHIP OPTIONS. AND YOU KNOW, THAT'S SOMETHING THAT IS REALLY IMPORTANT TO ME. THAT'S SOMETHING I HEARD FROM THE COMMUNITY THAT WE WANT TO TRY TO CREATE MORE AFFORDABLE ENTRY-LEVEL HOMEOWNERSHIP OPPORTUNITIES. SO I JUST WANTED TO EMPHASIZE THAT, THAT THE GOAL WITH MIDDLE HOUSING AND WITH THE SUBDIVISION REFERRAL IS THAT YOU WOULD HAVE POTENTIALLY A 5,000 SQUARE FOOT PARCEL THAT COULD HAVE THREE SMALLER SINGLE-FAMILY HOMES ON IT. THAT COULD BE OWNERSHIP OPPORTUNITIES. OR FOUR. THERE COULD BE THREE DUPLEXES, POTENTIALLY. AND POTENTIALLY CREATE MORE OWNERSHIP OPPORTUNITIES. SO I WANTED TO EMPHASIZE THAT. IN TERMS OF MY COLLEAGUE'S MOTION ON THIS REFERRAL OF APPLYING THE FEE TO SINGLE FAMILY HOMES, YOU KNOW, TO ME THIS IS AN IMPORTANT IMPROVEMENT ON THE H.A.C. RECOMMENDATION. I DON'T SUPPORT, BASED

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

ON WHAT I UNDERSTAND WHAT THE HOUSING ADVISORY COMMISSION WAS PROPOSING, IT SOUNDED LIKE IT WAS A FEE ON ALL SINGLE-FAMILY HOMES THAT ARE DETACHED. YOU KNOW, AS I JUST STATED, I THINK WE WANT TO INCENTIVIZE SMALLER SINGLE-FAMILY HOMES ON A LOT. MULTIPLE SINGLE-FAMILY HOMES ON A LOT TO CREATE MORE OWNERSHIP OPPORTUNITIES. BUT I AM INTERESTED AND WILLING TO LOOK INTO A FEE ON A SINGLE-FAMILY HOME THAT IS NEW, THAT IS GREATER THAN 2500 SQUARE FEET THAT SEEMS LIKE QUITE A LOT OF SPACE, 2500 SQUARE FEET. IF YOU WANT TO GO BEYOND THAT, THAT'S WHERE, KNOW, WITH THIS REFERRAL WE ARE GOING TO EXPLORE WHETHER SOME FEE LEVEL IS APPROPRIATE. I WANT TO NOTE, WE HAVEN'T SPECIFIED WHICH FEE LEVEL YET. THAT WOULD BE SOMETHING WE WOULD CONSIDER WHEN THIS COMES BACK TO US. I ALSO WANT TO NOTE THE 2500 SQUARE FEET, THERE IS SOME LOGIC TO THAT. THE MIDDLE HOUSING DIRECTION THAT WAS GIVEN BY THIS COUNCIL BACK IN, I THINK SEPTEMBER OR THE SUMMER OF LAST YEAR, WE GAVE DIRECTION TO ALLOW A HOME UP TO 2500 SQUARE FEET BY RIGHT. THE IDEA IF YOU ARE GOING TO GO BEYOND THAT YOU WON'T BE SUBJECT TO THE BY RIGHT PROCESS. THE QUITE A LARGE HOME, LESS ENERGY EFFICIENT. WE MIGHT WANT TO LOOK AT LEVYING A FEE ON THAT. BUT WITH THAT, I'M READY TO SUPPORT THIS MOTION. I WANT TO THANK OUR STAFF FOR ALL THE WORK THAT'S GONE INTO THIS. IT WAS A LOT OF STUDIES. I THINK WE HAD MULTIPLE WORK SESSIONS ON THIS. AS WE TEND TO DO. SO I THINK THIS IS

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

READY TO ADOPT AT THIS POINT. THANK YOU VERY MUCH.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER TREGUB?

>> I. TREGUB: YEAH, I WANTED TO ECHO MY COLLEAGUES' PREVIOUS REMARKS THANKING STAFF. AND I, TOO, WANT TO VOICE MY SUPPORT FOR THIS PROPOSAL. WHICH, IN MY MIND, CONSTITUTES A MODEST BUT IMPORTANT CHANGE TO A VERY BIG CHANGE TO THE POLICY SEVERAL YEARS AGO. IN MY TIME ON THE ZONING BOARD AND I THINK MY FORMER ZAB COLLEAGUE THEN, COUNCILMEMBER O'KEEFE AND I HAVE SOMETIMES FACED PROJECTS THAT YOU KNOW, COULD BE GAINED, THE NUMBER OF UNITS COULD BE GAINED TO AVOID PAYING A FEE APPROPRIATE TO THE LEVEL OF DEVELOPMENT. AND THE CHANGE TO A PER SQUARE FOOT BASIS WHICH IS PROBABLY THE SINGLE MOST IMPORTANT CHANGE TO THE ACCOUNTING THAT I HAVE SEEN AND I THINK REALLY BETTER HELPS US ENSURE THAT WE ARE GENERALLY, YOU KNOW, THE DEVELOPER DEPENDING ON WHAT THEY BUILD, THEY COULD BE TRULY INDIFFERENT TO PAYING THE IN-LIEU FEE OR PROVIDING INCLUSIONARY UNITS. BUT ALSO FOR THE SMALLER PROJECTS, ENSURING THAT MIDDLE HOUSING CAN BE BUILT AND CAN PENCIL. I ALSO SUPPORT COUNCILMEMBER LUNAPARRA'S TWO PROPOSED CHANGES ON THE MOTION. I THINK THIS IS A VERY ELEGANT ADJUSTMENT. I JUST WANTED TO ASK THE COUNCILMEMBER IF YOU WERE CONTEMPLATING FOR THAT STUDY OF SINGLE-FAMILY HOMES BETWEEN 2,500 AND 5,000 SQUARE FEET. WOULD THAT BE INCLUSIVE OF ACCESSORY DWELLING UNITS IF ANY ARE CONTEMPLATED ON THE LOT.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> C. LUNAPARRA: A.D.U.S A ARE EXEMPT FROM THIS ALL TOGETHER, SO THEY DON'T APPLY.

>> R. KESARWANI: COUNCILMEMBER, IF I MAY, A.D.U.'S COULD ONLY BE UP TO 1,000 SQUARE FEET. SO BY DEFINITION, THAT'S ANOTHER WAY IT JUST DOESN'T APPLY TO THAT.

>> I. TREGUB: SO IT WOULD BE JUST A SINGLE-FAMILY HOME, NOTWITHSTANDING ANY ATTACHED OR DETACHED ACCESSORY DWELLING UNITS ON THE LOT, CORRECT?

>> C. LUNAPARRA: CORRECT, YES. THE GOAL IS FOR IT ONLY APPLY WHEN THEY ARE BUILDING ONLY ONE UNIT ON ONE PARCEL.

>> I. TREGUB: ONLY ONE UNIT ON ONE PARCEL. YEAH, I'M HAPPY TO SUPPORT THE MOTION. AND I APPRECIATE STAFF'S WORK BUT ALSO THE WORK OF THE HOUSING ADVISORY COMMISSION AND THE PLANNING COMMISSION THROUGHOUT THIS PROCESS. THANK YOU.

>> MAYOR ISHII: OKAY, THANK YOU. COUNCILMEMBER BLACKABY?

>> B. BLACKABY: THANK YOU, COUNCILMEMBER LUNAPARRA FOR THE CLARIFICATION. IT'S STAFF RECOMMENDATIONS THE FIRST PART AND STUDY THE SECOND PART. SORRY, ANALYSIS ON THE SECOND PART. QUESTION ON THE ANALYSIS. THE ANALYSIS IS CONSIDERED POTENTIALLY DIFFERENT FEE LEVELS. TOLERANCE ON THE SIZE. IT FEELS LIKE 2,500, WHY YOU HAVE CHOSEN IT BUT IT WOULD BE INTERESTING TO STUDY FEE LEVELS AND SIZES. I'M A LITTLE UNCOMFORTABLE NOW UNTIL I SEE THE NUMBERS. IS IT 2,000, 2,500, IF YOU ARE WORRIED ABOUT

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

THE MCMANSION, IS IT 3,000. I JUST WONDER WHERE WE DRAW THE LINE THERE.

>> C. LUNAPARRA: YEAH, WE CAN ALSO ASK STAFF WHAT THEY THINK ABOUT THIS, ABOUT WHAT, IF THEY WOULD PREFER MORE FLEXIBILITY THERE OR AUTOMATICALLY INCORPORATE THIS INTO THEIR STUDY. DO YOU HAVE ANY --

>> B. BLACKABY: WE DON'T DICTATE THE STUDY IS 2,500 SQUARE FEET. THE RIGHT FEE FOR THE RIGHT SIZED PROJECT. WE HAVE SOME FLEXIBILITY TO LOOK AT VARIANCE ALONG THOSE LINES.

>> C. LUNAPARRA: IS THAT AN AMENDMENT?

>> B. BLACKABY: I WOULD MAKE A FRIENDLY AMOUNT TO NOT MAKE IT ARBITRARILY 2,500 SQUARE FEET BUT SERIES OF FEE LEVELS AT DIFFERENT SQUARE FOOTAGES.

>> R. KESARWANI: COUNCILMEMBER BLACK ABY, IF I UNDERSTAND CORRECTLY, YOU WANT TO DO SOME SORT OF TIERING?

>> B. BLACKABY: YES.

>> R. KESARWANI: I PERSONALLY DON'T WANT TO GO LESS THAN 2,500 BUT I WOULD CONSIDER TIERING.

>> B. BLACKABY: JUST WHERE WE WOULD DRAW THE LINE.

>> R. KESARWANI: CERTAINLY, THE COUNCIL WOULD BE FREE TO INCREASE THAT SQUARE FOOTAGE, WHEN THIS INFORMATION COMES BACK TO US. IT'S NOT THAT WE WOULD BE HELD TO 2,501 SQUARE FEET. THERE REMAINS FLEXIBILITY.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> B. BLACKABY: IF THE ANALYSIS LOOKS AT THE RANGE THAT WOULD BE HELPFUL TO ME.

>> C. LUNAPARRA: COULD WE ASK STAFF, GO TO STAFF QUICKLY?

>> CITY MANAGER BUDDENHAGEN: I THINK, SURE, WE COULD LOOK AT A RANGE, WITH 2,500 BEING THE LIMIT OF THE FLOOR AND GOING UP FROM THERE. THERE'S DIFFERENT RANGES. THAT'S FINE.

>> R. KESARWANI: IF I MAY, I KNOW COUNCILMEMBER BLACKABY, YOU HAVE THE FLOOR, THE STAFF MAY WANT TO CONSIDER, IF NOT TOO MUCH WORK, WHAT TYPES OF APPLICATIONS HAVE COME TO ZAB AND THE SIZES. THERE HAVE ONLY BEEN A LIMITED NUMBER OF THESE LARGE SINGLE-FAMILY HOMES. IF WE KNOW THERE'S A CERTAIN NATURAL CUT-OFF WE MIGHT BE ABLE TO USE THAT INFORMATION FOR WHEN THIS APPLIES.

>> B. BLACKABY: YEAH, HOWEVER THE MOTION, I JUST DIDN'T WANT TO NARROWLY PRESCRIBE THE ANALYSIS AND GIVE THEM ROOM TO EXPLORE, THAT'S ALL.

>> MAYOR ISHII: OKAY, SO JUST TO CLARIFY, IS THERE A FRIENDLY AMENDMENT?

>> B. BLACKABY: FRIENDLY AMENDMENT, ACTUALLY IF YOU COULD REMIND ME HOW YOU HAVE WRITTEN IT.

>> C. LUNAPARRA: REFER TO STAFF AND CITY ATTORNEY'S OFFICE AND ECONOMIC AND LEGAL ANALYSIS OF EXTENDING THE IN-LIEU FEE TO 2,500 SQUARE FOOT PER ONE-UNIT PARCEL.

>> B. BLACKABY: OKAY.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> MAYOR ISHII: THAT WOULD BE THE ADJUSTMENT?

>> C. LUNAPARRA: THAT'S THE ONE I WROTE.

>> B. BLACKABY: I THINK THAT INTERPRETATION FITS, SO LONG AS, YEAH I THINK WE ARE GOOD. THANK YOU.

>> C. LUNAPARRA: ALL RIGHT. THANK YOU.

>> MAYOR ISHII: ALL RIGHT. MOVING ONTO COUNCILMEMBER HUMBERT?

>> M. HUMBERT: THANK YOU, MADAM MAYOR. I DON'T HAVE MUCH TO ADD TO THE COMMENTS OF MY FELLOW COUNCILMEMBERS. I WANT TO THANK STAFF REALLY HEARTILY AND OUR CONSULTANTS AND PLANNING COMMISSION FOR THE WORK AND ALSO INCORPORATING PREVIOUS COUNCIL DIRECTION. I THANK YOU ALSO TOO, COUNCILMEMBERS KESARWANI AND TAPLIN WHO I THINK DID A DEEPER DIVE ON THIS. AND ALSO TO COUNCILMEMBER LUNAPARRA FOR HER ADDITIVE MOTION, WHICH I SUPPORT. I THINK IT MAKES ALL THE SENSE IN THE WORLD. I DO HOPE WE CAN REVISIT THIS IN A FEW YEARS AND REALLY SEE HOW THIS IS WORKING OUT, ASSUMING THAT THESE KINDS OF PRODUCTS ARE GOING TO BE BUILT, I SURE HOPE THEY WILL BE. THANK YOU.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER. COUNCILMEMBER O'KEEFE?

>> S. O'KEEFE: I VERY MUCH SUPPORT THIS. I JUST WANT TO REALLY THANK STAFF AND REALLY COMMEND YOU ON CRAFTING SOMETHING VERY WELL. THIS IS, IT'S DIFFICULT TO BALANCE THE NEED FOR AFFORDABLE HOUSING MONEY AND NOT INCENTIVIZE BUILDING AND DISTRIBUTE IT FAIRLY AND YOU HAVE THE DENSITY BONUS. IT'S A LOT OF THINGS. AND

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

YOU KNOW, AS COUNCILMEMBER TREGUB ALREADY MENTIONED WE HAVE SEEN ALL THE WAYS IT COULD GO WRONG ON ZAB. I THINK THIS IS REALLY, REALLY WELL DONE. IT'S MATHEMATICALLY BEAUTIFUL, I THINK I SAID TO COUNCILMEMBER LUNAPARRA. WE MADE A GRAPH OF IT IF YOU WANT TO SEE LATER. I'M DEFINITELY HAPPY TO SUPPORT IT. I'M HAPPY TO VOTE FOR THE AMENDED MOTION. I'M NOT SURE I ACTUALLY WANT TO MAKE THIS CHANGE. IT'S MAKING THE PROJECTS A LOT MORE EXPENSIVE, I DON'T FEEL COMFORTABLE BUT GETTING MORE INFORMATION IS GREAT. SO I'M HAPPY TO SUPPORT THE MOTION.

>> MAYOR ISHII: REALLY APPRECIATE YOU BOTH. LET'S TAKE ROLL. TEST, TEST.

>> MAYOR ISHII: TESTING, ALL RIGHT. I DON'T KNOW WHY. COULD YOU JUST TAKE THE ROLL PLEASE FOR THAT MOTION. AND THEN WE ARE GOING TO TAKE A 10-MINUTE BREAK, I THINK. ALSO JUST AGAIN, THANK YOU SO MUCH.

>> THIS IS ON THE MOTION OF COUNCILMEMBER LUNAPARRA. SO ON THE MOTION, COUNCILMEMBER KESARWANI?

>> YES.

>> TAPLIN?

>> YES.

>> BARTLETT?

>> YES.

>> TREGUB?

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> AYE.

>> O'KEEFE?

>> YES.

>> BLACKABY?

>> YES.

>> LUNAPARRA?

>> YES.

>> HUMBERT?

>> YES.

>> AND MAYOR ISHII?

>> MAYOR ISHII: YES.

>> ALL RIGHT, I HAVE RECORDED ALL AYES.

>> MAYOR ISHII: THANK YOU SO MUCH. AND THANK YOU, STAFF, I REALLY APPRECIATE YOUR PRESENTATION. I JUST BRIEFLY WANT TO SAY THANK YOU AGAIN FOR THOSE OF YOU COMING OUT TONIGHT TO SUPPORT THE PEACE AND JUSTICE RESOLUTION. I JUST WANT TO MAKE SURE YOU KNOW I HEAR YOUR COMMITMENT AND YOUR CONCERN. AS I SAID AT THE LAST MEETING, MY OFFICE IS CONTINUING TO DO OUR DUE DILIGENCE MEETING WITH COMMUNITY MEMBERS ON THIS ISSUE. WE ARE ACTUALLY MEETING WITH THREE PEACE AND JUSTICE COMMISSIONERS THIS WEEK. WE ARE GOING TO TAKE A BREAK. I'M GOING TO RUN OUT FOR A MINUTE AND COME BACK. I'M HAPPY TO SPEAK WITH YOU ALL. JUST WANT YOU TO KNOW YOU ARE GOING TO HAVE THAT TIME. SO THANK YOU. [RECORDING

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

STOPPED] [10-MINUTE BREAK]

>> MAYOR ISHII: TESTING, TESTING. TEST, TEST. TEST, TEST TEST, TESTING, TESTING.

>> MAYOR ISHII: TESTING. OH, HERE WE ARE. ALL RIGHT. WE ARE GOING TO USE A HANDHELD MIC BECAUSE OURS SOUND LIKE ROBOTS OR ALIENS. UNCLEAR. WE ARE RETURNING FROM COUNCIL BREAK. I THINK I HAVE EVERYONE. YEAH, THIS IS ON. CAN YOU HEAR ME? IT DOESN'T SOUND GREAT STILL? I THINK IT SOUNDS BETTER THAN THIS OTHER ONE, SO. WE ARE GOING -- [RECORDING IN PROGRESS]

>> MAYOR ISHII: THANK YOU. WE ARE GOING ONTO ITEM 15, ZONING ORDINANCE AMENDMENTS TO TITLE 23 OF THE BERKELEY MUNICIPAL CODE FOR CONSISTENCY WITH STATE LAW RELATED TO ELECTRIC VEHICLE CHARGING AND TECHNICAL EDITS. I WILL HAND IT OVER TO OUR CITY MANAGER.

>> CITY MANAGER BUDDENHAGEN: THANK YOU. MAYOR? I'M JUST GOING TO TURN IT OVER TO PLANNING DEPUTY DIRECTOR ALI PEARSON AND HER TEAM, IT'S A VERY SHORT PRESENTATION.

>> IS THAT RIGHT? NO? IT'S NOT WORKING, OH THERE IT IS. THANK YOU, MAYOR, AND COUNCILMEMBERS, I'M AILEEN PEARSON, HERE WITH JUSTIN HORNER AND ROBERT RIVERA, SENIOR PLANNER. STAFF AND LAND USE PLANNING, WE COME TO CITY COUNCIL A COUPLE TIMES A YEAR WITH NON-SUBSTANTIVE AMENDMENTS TO MAKE SURE THE ZONING ORDINANCE ALIGNS WITH STATE LAWS AND IT'S FREE OF TECHNICAL ERRORS. THAT'S

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

WHAT WE ARE HERE TO DO TONIGHT. I WILL PASS IT OFF TO ROBERT AND HE WILL WALK YOU THROUGH THOSE AMENDMENTS.

>> GREAT. THANK YOU SO MUCH. LET ME SHARE THE PRESENTATION. ALL RIGHT. EVERYONE SHOULD BE ABLE TO SEE THAT. GOOD EVENING, COUNCILMEMBERS. I'M ROBERT RIVERA. I'M A SENIOR PLANNER. TONIGHT COUNCIL WILL CONSIDER ZONING AMENDMENTS TO CONFORM TO STATE LAW RELATED TO ELECTRIC VEHICLE CHARGING, ACCESSORY DWELLING UNITS, AND EDITS AND CORRECTIONS. BEFORE I SUMMARIZE THE PROPOSED ORDINANCE I WOULD LIKE TO BRIEFLY GO OVER THE BACKGROUND FOR STAFF'S PROPOSAL. THIS IMAGE SHOWS THE NUMBER OF STATE LAWS RELATED TO HOUSING THAT HAVE BEEN PASSED BY THE STATE IN THE PAST THREE YEARS. STATE LEGISLATORS HAVE BEEN ACTIVELY WORKING TO HELP THE HOUSING CRISIS AND AS A RESULT WE HAVE BEEN REGULARLY RETURNING TO CITY COUNCIL, BY MAINTAINING THE INTEGRITY OF THE ZONING ORDINANCE. THE PROPOSED AMENDMENTS ARE REGULAR, ROUTINE AND REQUIRED FOR COMPLIANCE WITH RECENTLY ADOPTED STATE LAWS. INCLUDE CORRECTIONS, CLARIFICATIONS AND TECHNICAL EDITS TO ENSURE CONSISTENCY THROUGHOUT THE ZONING ORDINANCE. THE PROPOSED ZONING ORDINANCE WOULD IMPLEMENT STATE LAWS RELATED TO ELECTRIC VEHICLE CHARGING, ACCESSORY DWELLING UNITS AND INCLUDE NON-SUBSTANTIVE TECHNICAL EDITS. WITH REGARD TO ELECTRIC VEHICLE CHARGING STATIONS, AB1236 AND AB970 REQUIRE ALL CITIES TO REQUIRE INSTALL ELECTRIC VEHICLE CHARGING STATIONS

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

WITH BUILDING PERMIT. THE PROPOSED CHANGES UPDATE THE TABLE, AND UPDATE THE GLOWS RY DEFINITIONS TO CLARIFY NO ZONING REVIEW IS NEEDED. WITH REGARDS TO ACCESSORY DWELLING UNITS, SB477 REORGANIZED AND RENUMBERED SECTIONS OF THE GOVERNMENT CODE RELATED TO ACCESSORY DWELLING UNITS OR A.D.U.'S. THE PROPOSED ZONING ORDINANCE REALIGNS SECTIONS OF THE MUNICIPAL CODE WITH THESE CHANGES. THE PROPOSED ZONING ORDINANCE ALSO ADDRESSES CONSISTENCIES WITH THE STATE LAW BY REMOVING NOTICING REQUIREMENTS FOR AB APPLICATIONS TO BE DEEMED COMPLETE. ALTHOUGH NOTIFICATIONS WOULD CONTINUE AS A COURTESY. LASTLY, THE PROPOSED AMENDMENT ALSO INCLUDES AN EXEMPTION TO THE JUNIOR A.D.U. OWNER OCCUPANCY REQUIREMENT. THERE'S A CODIFIED EXEMPTION FOR GOVERNMENT AGENCIES, LAND TRUSTS OR HOUSING ORGANIZATIONS. AND THAT'S INCLUDED IN THE UPDATE. LASTLY, ARE THE NON SUBSTANTIVE TECHNICAL EDITS SUMMARIZED IN TABLE 1 OF THE STAFF REPORT. THESE INCLUDE ALL PROPOSED CHANGES AND THEIR CORRESPONDING SECTIONS, THEY FALL MAINLY TO THREE BUCKETS REGARDLESS OF WHICH POLICY SECTION IS BEING UPDATED. THE FIRST IS CORRECTIONS. MANY OF THE TECHNICAL EDITS CORRECT ERRORS. THESE ERRORS ARE MAINLY GRAMMATICAL OR G.I.S. RELATED OR COULD BE TRANSMITTAL ERRORS FROM WHEN THE OLD B.M.C. WAS REVAMPED TO THE NEW B.M.C. OR A RESULT OF RECENTLY ADOPTED ZONING AMENDMENTS. THESE TECHNICAL EDITS REFERENCE SECTIONS THAT HAVE CHANGED DUE TO RECENTLY

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

ADOPTED ZONING AMENDMENTS OR NEW SECTIONS OF GOVERNMENT CODE. THE LAST BUCKET IS CLARIFICATIONS. THESE UPDATES INCLUDE MORE SPECIFIC LANGUAGE OF EXISTING PRACTICE AND PROCEDURES TO MAKE THE ZONING ORDINANCE LANGUAGE EASIER TO UNDERSTAND. STAFF RECOMMENDS COUNCIL APPROVE. THIS CONCLUDES STAFF'S PRESENTATION. I'M AVAILABLE FOR ANY QUESTIONS.

>> MAYOR ISHII: THANK YOU SO MUCH. CAN YOU HEAR ME NOW? OKAY, GREAT. THANK YOU VERY MUCH. APPRECIATE THE PRESENTATION. I KNOW IT WAS PRETTY THIN, THANK YOU ALSO FOR WAITING TO PRESENT IT. I WOULD LIKE TO OPEN THE PUBLIC HEARING AND ALSO TAKE COUNCIL QUESTIONS ONLY. QUESTIONS? NO QUESTIONS. AND SOMETHING I JUST WANTED TO SAY, IN CASE FOLKS MISSED IT, THERE ARE OTHER CHANGES AND UPDATES THAT WILL BE MADE, THIS IS NOT THE FINAL THING. I WANT TO MAKE SURE IT'S REITERATED. IN THAT CASE I WILL TAKE PUBLIC COMMENTS ON THIS PRESENTATION. I DON'T SEE ANY SPEAKERS IN THE ROOM. ANY SPEAKERS ON ZOOM, PLEASE RAISE YOUR HAND AT THIS TIME.

>> THERE ARE NO SPEAKERS ON ZOOM.

>> MAYOR ISHII: GREAT, IS THERE A MOTION TO CLOSE THE PUBLIC HEARING? OKAY, IF NO OBJECTIONS WE WILL BE PASSING THIS UNANIMOUSLY THEN. ALL RIGHT, THANK YOU. AND COUNCIL DELIBERATIONS? OKAY. AGAIN, UNLESS THERE ARE ANY OBJECTIONS I WILL HAVE US LISTED UNANIMOUSLY AS SUPPORTING THIS. ALL RIGHT,

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

WELL THEN, THANK YOU VERY MUCH. THANKS FOR YOUR PRESENTATION. THANKS, EVERYONE. ALL RIGHT. ARE THERE ANY OTHER PUBLIC COMMENTS FOR ITEMS NOT ON THE AGENDA THAT WE DIDN'T HEAR EARLIER IN THE MEETING?

>> YES, I DID NOT SPEAK EARLIER. I HEARD A COMMENT MADE ABOUT THE POLICE NOT COOPERATING WITH THE S.C.U. I HAVE EXPERIENCED THIS IN CALLS WHERE THE SEU WILL NOT COME OUT, THEY SAID HAVE THE POLICE COME OUT FIRST, ET CETERA. SO THERE'S BEEN A FEW SITUATIONS LIKE THAT. I GET THE SAME REPORTS FROM OTHER PEOPLE. IF THE POLICE ARE NOT INVOLVED, IT'S BECAUSE OF THIS DECISION THAT WAS MADE TO EXTRICATE THE POLICE, WHICH IS CONTRARY TO EVERY CRISIS MODEL ACROSS THE COUNTRY. I MEAN, YOU HAVE, EVEN THE CAHOOTS WHICH IS THE EUGENE, OREGON MODEL THE CRISIS SYSTEM WAS BASED ON, MOBILE CRISIS, COORDINATES WITH THE POLICE. THEY PARTNER WITH THE POLICE EVEN WHEN NON-POLICE GO OUT TO THE SCENE. THERE STILL HAS TO BE THAT PARTNERSHIP, THAT SHARING OF INFORMATION, THAT SINGLE DISPATCH LINE. AGAIN, WHAT WE DID IS WE ARE IN A SITUATION WHERE WE DON'T EVEN HAVE ENOUGH BERKELEY POLICE DEPARTMENT DISPATCHERS BECAUSE IT'S A HIGHLY-SKILLED TALENT. WE TOOK INSTEAD AN AGENCY THAT WE CONTRACTED OUT THAT IS ALSO HAVING PROBLEMS WITH THEIR CONTRACT WITH THE MACRO IN OAKLAND AND HAVE THEM RUNNING THEIR OWN LINES SEPARATE FROM THE POLICE. THE VERY LACK OF COORDINATION IS WHERE THE PROBLEM IS

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

HERE. THE SEU STARTED WITH THE BEST OF INTENTIONS. MOVING FORWARD WE, AND A LOT OF STATE MONEY THAT WAS USED TOWARDS THIS. MOVING FORWARD ESPECIALLY AS OUR BELTS HAVE TO BE TIGHTENED WE HAVE TO HAVE A COORDINATED-WISE EFFORT P AND LOOK AT THE OTHER CRISIS RESPONSE MODELS ACROSS THE COUNTRY THAT ARE WORKING EFFECTIVELY. THANK YOU.

>> MAYOR ISHII: THANK YOU. YEAH, THAT IS A CONCERN I HAVE AS WELL. OTHER PUBLIC COMMENTS?

>> YES, WE HAVE FOUR HANDS RAISED IN ZOOM. THE FIRST SPEAKER IS CHERYL.

>> IT'S FORMER COUNCILMEMBER CHERYL DAVILA, PLEASE. BE RESPECTFUL. YEAH, SO YOU KNOW, PALESTINE IS GETTING BOMBED EVERY DAY IN THE WEST BANK, NOW THEY HAVE MOVED OUT OF GAZA AND ARE TAKING OVER THE WEST BANK. THE SETTLERS ARE KILLING PEOPLE, STABBING PEOPLE. BABIES ARE DYING. FROM THE COLD. BECAUSE THEY DON'T HAVE THE TENTS. THEY DON'T HAVE, YOU KNOW, HOMES TO LIVE IN BECAUSE IT'S BEEN PULVERIZED BY IT'S NOT REAL. SO I DON'T KNOW WHAT IT'S GOING TO TAKE FOR YOU ALL TO HAVE SOME BACKBONE AND TO REALIZE THIS IS AN ETHNIC EXPULSION, EXTINCTION TRYING TO TOTALLY GET RID OF PALESTINIANS IN PALESTINE. AND IT'S NOT REAL IS IT'S NOT REAL. IT SHOULD NOT BE HAPPENING. AND I WISH YOU ALL WOULD LIKE WAKE UP AND DRINK -- I WAS GOING TO SAY DRINK THE KOOL-AID, BUT THEN YOU WOULDN'T BE HERE. NO, WAKE UP AND DRINK

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

SOME COFFEE AND THEN REALIZE THAT, YOU KNOW, PEOPLE NEED TO LIVE IN PALESTINE. PALESTINIANS NEED TO LIVE AND STOP BEING MURDERED BY IT'S NOT REAL. AND YOU NEED TO PASS A RESOLUTION. BECAUSE IF BERKELEY DOES SOMETHING, OTHERS WILL FOLLOW. YOU ARE GOING TO HAVE THIS ON YOUR BACK, ALL OF YOU, EXCEPT FOR MAYBE ONE. SO, YOU KNOW, YOU ARE CREATING THE HISTORY AND IT DOESN'T LOOK GOOD. SO DO THE RIGHT THING, PASS A RESOLUTION TO FREE PALESTINE FROM THE RIVER TO THE SEA.

>> THANK YOU FOR YOUR COMMENTS. THE NEXT SPEAKER IS MONI.

>> THANK YOU, I AGREE WITH THE FORMER CITY COUNCIL MEMBER CHERYL DAVILA AS TO THE ITEM YOU HAVEN'T AGENDIZED FOR A CEASE-FIRE AS WELL AS CALL FOR AID FOR THOSE WHO HAVE BEEN IMPACTED BY BILLIONS OF DOLLARS OF U.S. TAX MONEY SPENT FOR THE BOMBS AND BULLETS AND THE HARM THAT'S BEEN UNFORTUNATELY AND TRAGICALLY PLUMMETING AN AREA OF PEOPLE WHO ARE WOMEN, CHILDREN AND ELDERS. I DO HOPE THAT WILL BE ON THE AGENDA. I THOUGHT IT WOULD BE TONIGHT. I DROVE OVER AND I'M IN THE PARKING LOT. BUT MY OTHER CONCERN IS ABOUT THE SPECIALIZED CARE UNIT THAT IT WILL BE FULLY FUNDED WITH A CALL LINE. I HAVE CALLED THE SCU AND I'VE SEEN PEOPLE IN NEED OF HELP. THEY HAVE STAFFING ISSUES. ALL THE AREAS OF NEED THAT NEED TO BE FILLED TO MAKE THAT PROGRAM WORK IS CRITICAL. WE DON'T WANT PEOPLE HARMED BY POLICE WHO ARE HAVING A MENTAL HEALTH OR SUBSTANCE ABUSE ISSUE THAT NEEDS A SOCIAL

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

WORKER, THE PERSON IN THAT TEAM OF THREE. THE MENTAL HEALTH WORKER, THE PERSON WHO HAS SKILLS TO RESPOND TO THAT CRISIS. SO LET'S FIX IT, NOT DROP IT. AND LET'S MAKE IT BETTER. THANK YOU. OUR COMMUNITY NEEDS IT.

>> OUR NEXT SPEAKER IS SHAINA.

>> YEAH, I WAS JUST GOING TO SAY PLEASE PUT THE RESOLUTION THE P.J.C. PASSED ON THE AGENDA. IT'S THE RIGHT THING TO DO. IT'S THE THING THAT, YOU KNOW, WE, AS A CITY THAT LIKES TO PRIDE OURSELVES ON OUR PROGRESSIVE VALUES, YOU KNOW, SHOULD BE DOING. IT SHOULD AT LEAST GET ONTO THE AGENDA SO WE CAN SEE WHERE ALL OUR ELECTED OFFICIALS STAND. YOU KNOW, IN A PUBLIC VOTE ON IT. SO WE COULD SEE WHERE THE PEOPLE WE ELECTED TO OFFICE STAND ON THIS ISSUE THAT'S PRITI OBVIOUS TO THE MAJORITY OF POPULATION AT THIS POINT. FURTHERMORE, I WOULD SAY THAT WE SHOULDN'T HAVE THE POLICE INVOLVED IN ANYTHING ADDITIONAL UNTIL WE GET TO THE BOTTOM OF THE TEXT-GATE. AND WHAT EXACTLY THEY SAID SHOULD BE MADE PUBLIC, THE PUBLIC HAS A RIGHT TO KNOW WHAT THE POLICE ARE SAYING AND DOING.

>> THANK YOU, OUR FINAL SPEAKER IS THE CALLER WITH THE NUMBER ENDING IN 191.

>> HI, GOOD EVENING, I WOULD LIKE TO? (?) HE WAS A GREAT MAN. HE WAS KIND ENOUGH TO HAVE TWO POLICEMEN IN BERKELEY GUARD OUR BUSINESS FOR SIX YEARS. OF COURSE WE PAID $6,000 A MONTH. WE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

LIVE IN VERY DARK AGES , WHY THE CRAZY MANIAC CRIMINAL IN THE WHITE HOUSE? THIS MAN SHOULD BE IN THE MENTAL HOSPITAL. HE ALSO HAS ACCESS TO THE [INDISCERNIBLE] HE COULD NUKE THE WORLD IN SECONDS, AND I BET HE WILL. I HAVE SPENT YEARS NUCLEAR PHYSICS, NUCLEAR BOMBS. MY BEAUTIFUL ASSISTANT DELIVERED A NOTICE -- SUE BERKELEY FOR $1,080,000, HORRIBLE LOSS BECAUSE THE CITY PRIOR TO THIS MAYOR, SHE IS A GOOD WOMAN. THE CITY, WHAT DO YOU CALL IT? CORRUPTED WITH BUREAUCRACY AND VERY, VERY BAD EMPLOYEE -- IN YOUR MOUTHS AND NONE OF YOU ARE BRAVE ENOUGH TO STAND UP TO CORRUPTION. $200,000 IN THE BAY AREA. [INDISCERNIBLE] I PREDICT WE WILL HAVE A WAR WITHIN THE NEXT SIX MONTHS. HAVE A GOOD NIGHT.

>> THAT WAS OUR FINAL SPEAKER.

>> MAYOR ISHII: THANK YOU VERY MUCH. YEAH. I WAS JUST GOING TO SAY. OKAY, ALL RIGHT. AND IF THERE'S NO OPPOSITION TO THAT, WE WILL BE LISTED ALL AS AYES PASSING UNANIMOUSLY. OKAY, THANK YOU SO MUCH. I CANNOT STAND THESE MICS ANYMORE. THANK YOU, EVERYONE. THANK YOU SO MUCH. [RECORDING STOPPED] [ADJOURNED 8:52 P.M.]

Unofficial Text File